

#1 · How SQE2 Works and How It Is Marked

How many SQE2 assessments are there, and how are they split between oral and written?

Quick Reference

There are 16 assessments in total: 4 oral and 12 written. The 4 oral assessments are taken over two half days and the 12 written assessments over three half days, five half days in all.

#2 · How SQE2 Works and How It Is Marked

Does SQE2 contain any multiple choice questions?

Quick Reference

No. Every one of the 16 SQE2 assessments is performance based. There are no multiple choice questions anywhere in SQE2. Any material describing SQE2 as a multiple choice exam is describing something else, usually SQE1.

#3 · How SQE2 Works and How It Is Marked

Name the six legal skills assessed in SQE2 and say which are oral.

Quick Reference

Client interview with attendance note or legal analysis, and advocacy, are assessed orally. Case and matter analysis, legal research, legal writing and legal drafting are assessed in writing.

#4 · How SQE2 Works and How It Is Marked

Is there a separate negotiation assessment in SQE2?

Quick Reference

No. There is no separate negotiation assessment, but every delivery of SQE2 contains at least one assessment involving negotiation. It can appear in the client interview and attendance note, in case and matter analysis, or in legal writing.

#5 · How SQE2 Works and How It Is Marked

In which three skills does negotiation never appear?

Quick Reference

Negotiation never appears in advocacy, legal research or legal drafting. It is also never labelled as a negotiation exercise when it does appear, so you must recognise it yourself.

#6 · How SQE2 Works and How It Is Marked

List the five SQE2 practice areas with their underlying black letter law.

Quick Reference

Criminal Law and Practice, underpinned by criminal liability; Dispute Resolution, underpinned by contract law and tort; Property Practice, underpinned by land law; Wills and the Administration of Estates, underpinned by trusts law; and Business Law and Practice, underpinned by contract law.

#7 · How SQE2 Works and How It Is Marked

Which practice areas carry money laundering, and which carries financial services?

Quick Reference

Money laundering is examinable in both Business Law and Practice and Property Practice. Financial services is examinable only in Business Law and Practice.

#8 · How SQE2 Works and How It Is Marked

State the timings for the client interview station.

Quick Reference

You get 10 minutes to read the instructing email and the accompanying documents, then 25 minutes to conduct the interview. The reading period covers both the email and the documents, so a leisurely reading method will fail.

#9 · How SQE2 Works and How It Is Marked

How long is the attendance note station and how is it produced?

Quick Reference

The attendance note and legal analysis station is 25 minutes and is written by hand. It is the only handwritten element of SQE2.

#10 · How SQE2 Works and How It Is Marked

State the two timings for the advocacy station.

Quick Reference

You get 45 minutes of preparation, then 15 minutes of submissions to a judge.

#11 · How SQE2 Works and How It Is Marked

Give the timings for the four written skills.

Quick Reference

Case and matter analysis is 60 minutes, legal research is 60 minutes, legal writing is 30 minutes and legal drafting is 45 minutes. Legal writing is the shortest of the four written skills assessments, although the 25 minute handwritten attendance note is shorter still.

#12 · How SQE2 Works and How It Is Marked

What is the fixed oral pairing on Oral Day 1?

Quick Reference

FRONT: Which practice areas carry advocacy, and which carry the client interview? BACK: Advocacy is assessed only in Dispute Resolution and in Criminal Law and Practice. The client interview with attendance note is assessed only in Property Practice and in Wills and the Administration of Estates. Each oral half day carries one advocacy assessment and one interview, but the specification does not fix which pairing falls on which half day.

#13 · How SQE2 Works and How It Is Marked

What is the fixed oral pairing on Oral Day 2?

Quick Reference

FRONT: Where is advocacy never assessed, and where is the client interview never assessed?
BACK: Advocacy is never assessed in Property Practice, in Wills and the Administration of Estates, or in Business Law and Practice. The client interview is never assessed in Dispute Resolution, in Criminal Law and Practice, or in Business Law and Practice. Business Law and Practice has no oral station at all.

#14 · How SQE2 Works and How It Is Marked

State the negative version of the oral pairing: where do advocacy and interview never appear?

Quick Reference

Advocacy is never assessed in Property Practice, Wills and the Administration of Estates, or Business Law and Practice. The client interview is never assessed in Dispute Resolution, Criminal Law and Practice, or Business Law and Practice.

#15 · How SQE2 Works and How It Is Marked

Which practice area has no oral station at all?

Quick Reference

Business Law and Practice has no oral station. It is assessed only in writing, but it occupies the whole of written Day 3.

#16 · How SQE2 Works and How It Is Marked

Set out the fixed written pattern across the three written half days.

Quick Reference

Written Day 1 is two exercises in Dispute Resolution and two in Criminal Law and Practice. Written Day 2 is two in Property Practice and two in Wills and the Administration of Estates. Written Day 3 is all four written skills in Business Law and Practice.

#17 · How SQE2 Works and How It Is Marked

Why is it wrong to treat Business Law and Practice as a small subject because it has no oral station?

Quick Reference

Business Law and Practice takes the whole of written Day 3, so it carries four written exercises against two for each other practice area. It is the largest single written commitment in SQE2, and treating it as small gets the weighting exactly backwards.

#18 · How SQE2 Works and How It Is Marked

How is each individual assessment criterion graded?

Quick Reference

Each criterion is graded on a scale from A to F by a trained assessor making a global professional judgment. The assessor forms an overall view of your performance on that criterion rather than adding up points against a checklist.

#19 · How SQE2 Works and How It Is Marked

Convert the SQE2 grades A to F into marks and state what each means.

Quick Reference

A is 5 marks for superior performance well above the competency requirements, B is 4 for a clearly satisfactory performance that clearly meets them, and C is 3 for a marginal pass that on balance just meets them. D is 2 for a marginal fail, E is 1 for a clearly unsatisfactory performance, and F is 0 for poor performance well below the requirements.

#20 · How SQE2 Works and How It Is Marked

What separates a C from a B in practice?

Quick Reference

The gap between a marginal pass and a clearly satisfactory performance is usually made of ordinary professional habits rather than brilliance: answering the question actually asked, addressing the client rather than the examiner, and dealing with the awkward point instead of avoiding it.

#21 · How SQE2 Works and How It Is Marked

Can a strong grade on one criterion rescue a weak grade on another within the same assessment?

Quick Reference

No. Every criterion is graded independently. Clear, well structured writing does not compensate for law applied incorrectly, and correct law does not compensate for advice the client could not follow.

#22 · How SQE2 Works and How It Is Marked

How are skills and application of law weighted across SQE2 as a whole?

Quick Reference

They are weighted equally. Half the available credit is for how well you work as a solicitor and half is for how well you apply the law. Candidates arriving from SQE1 tend to over invest in the law half.

#23 · How SQE2 Works and How It Is Marked

Who marks the client interview, and on what criteria?

Quick Reference

The client interview is marked by the assessor who plays the client, and it is marked on skills only. There are no application of law criteria for the interview itself.

#24 · How SQE2 Works and How It Is Marked

Who marks the attendance note, advocacy and the written stations, and on what?

Quick Reference

A solicitor marks them, on both skills and application of law. So the interview and attendance note form a single station assessed by two different people against two different sets of criteria, and the law you spot in the interview room earns its marks only in the attendance note.

#25 · How SQE2 Works and How It Is Marked

How does the SQE2 pass mark work?

Quick Reference

There is one overall pass mark for SQE2 as a whole, with no separate oral or written pass mark and no requirement to pass each station individually. Performance is aggregated across all 16 assessments and the pass mark is scaled at each sitting under the SRA Marking and Standard Setting Policy, so no fixed percentage exists.

#26 · How SQE2 Works and How It Is Marked

Which three SQE1 areas are not assessed at SQE2 at all?

Quick Reference

The Legal System of England and Wales, including constitutional, administrative and EU law; Legal Services, except money laundering and financial services; and Solicitors' Accounts.

#27 · How SQE2 Works and How It Is Marked

What is the SQE2 law cut off date?

Quick Reference

The law examined is the law as it stood four calendar months before the first assessment in the assessment window. Anything in force after that date is outside the assessment, and you are not tested on the development of the law.

#28 · How SQE2 Works and How It Is Marked

Describe the SQE2 assessment conditions for the written stations.

Quick Reference

The written assessments are computer based on the Pearson VUE platform. There is no spell check, and a highlighter is available only on that platform, so practise with it. No books or notes may be brought in and nothing is open book.

#29 · How SQE2 Works and How It Is Marked

What level of legal detail is expected, and how are rates and thresholds handled?

Quick Reference

SQE2 tests fundamental legal principles at the standard of a newly qualified solicitor who can look detail up later. For every station except legal research you are given the materials you would look up. In tax questions the monetary values, rates and thresholds are given to you; what you must bring is knowledge that a relief or exemption exists and its conditions.

#30 · How SQE2 Works and How It Is Marked

When must you cite specific cases or statutory authorities in SQE2?

Quick Reference

Only in legal research, where citing specific cases and statutory or regulatory authorities is part of the skill assessed, and where a case name or provision is simply the normal professional term for the rule, such as *Rylands v Fletcher*, CPR Part 36 or a section 25 notice. Elsewhere, apply the principle rather than reciting its source.

#31 · Client Interviewing and the Attendance Note

Why should the interview and the attendance note be treated as two assessments rather than one?

Quick Reference

They are two halves of one station, but they are marked separately, by different people, against different criteria. You can perform beautifully in the room and still fail the paper, so each half needs its own preparation.

#32 · Client Interviewing and the Attendance Note

In which two practice areas is the client interview assessed, and on which oral day?

Quick Reference

Oral day 1 is the interview in Property Practice. Oral day 2 is the interview in Wills and the Administration of Estates. It is never assessed in Dispute Resolution, Criminal Law and Practice or Business Law and Practice.

#33 · Client Interviewing and the Attendance Note

What sort of scenarios should you practise interviewing on, and which should you avoid?

Quick Reference

Practise on property and wills problems: a purchase with a title problem, a client adding a partner to the deeds, a bereaved sibling working out who inherits, an executor facing an unhelpful bank. Do not practise on personal injury or a client charged with an offence, because those are advocacy problems.

#34 · Client Interviewing and the Attendance Note

What are the four things you should produce during the 10 minute reading period?

Quick Reference

The client's name and how they connect to everyone else mentioned; three or four headings for the areas the partner's email requires you to cover; the gaps only the client can fill, written as questions; and anything that already smells like a conduct problem. Not a full script.

#35 · Client Interviewing and the Attendance Note

How should you use the 10 minutes of reading time across the email and the documents?

Quick Reference

Read the partner's email twice and everything else once. The email is your instructions: it tells you who is coming in, what the firm already knows and often what the partner wants covered.

#36 · Client Interviewing and the Attendance Note

State the five skills criteria for the client interview.

Quick Reference

Listen and question effectively so the client can tell you what is important to them; communicate and explain in a way suitable for that client to understand; conduct yourself professionally and treat the client with courtesy, respect and politeness, including respecting diversity where relevant; demonstrate client focus in your approach to the client and the issues; and establish and maintain an effective relationship so as to build trust and confidence.

#37 · Client Interviewing and the Attendance Note

What earns no marks at all in the interview half of the station?

Quick Reference

Reciting section numbers and producing a complete answer to the legal problem earn nothing, because the interview has no application of law criteria. The lay client in the room is grading you on whether they left feeling heard, understood and looked after.

#38 · Client Interviewing and the Attendance Note

How much advice should you give in the interview room?

Quick Reference

Enough preliminary advice to reassure the client that you have understood the problem, that the firm deals with it regularly and that there is a route through it. You are not expected to give detailed advice; detailed legal analysis belongs in the attendance note, which is where the law is marked.

#39 · Client Interviewing and the Attendance Note

What is wrong with telling the client for 25 minutes that you will take instructions and write to them?

Quick Reference

It leaves the client without trust or confidence in you, and trust and confidence is an express criterion. Preliminary advice should be confident and honest, commit to nothing that might be wrong, and name the next step.

#40 · Client Interviewing and the Attendance Note

Set out the repeatable five stage core of the interview and the time each takes.

Quick Reference

FRONT: Set out the repeatable interview structure and the time each stage takes. BACK: Greeting and introductions about one minute, purpose and outline about one minute, listening phase about eight minutes, funnelling to closed questions about eight minutes, summarising back about three minutes, preliminary advice and next steps about three minutes, costs and client care where relevant about one minute, and closing in under a minute.

#41 · Client Interviewing and the Attendance Note

What belongs in the purpose and outline stage of the interview?

Quick Reference

Tell the client what will happen so nothing surprises them: that you will listen first, then ask detailed questions, then summarise back for correction, then agree next steps. Confirm that everything they tell you is confidential to the firm and check they are content to proceed.

#42 · Client Interviewing and the Attendance Note

How should the listening phase be conducted?

Quick Reference

Open with one broad invitation such as asking the client to say in their own words what has brought them in, then let them talk. Use minimal encouragers, do not interrupt to correct a legal misdescription and do not start advising. Keep notes short and keep looking up, because a head down for eight minutes loses the relationship criteria.

#43 · Client Interviewing and the Attendance Note

What is the funnelling phase for, and what sort of questions does it use?

Quick Reference

It works through your headings and fills the gaps, using closed questions for hard facts such as dates, names, amounts and whether anything has been signed. Probe a thin answer with a request to tell you more, and signpost each move to a new topic.

#44 · Client Interviewing and the Attendance Note

Why does summarising back earn its three minutes?

Quick Reference

Repeating the instructions in compressed form and inviting correction repairs your mishearings and prompts the client to volunteer the thing they held back. Close it with a direct question asking whether you have missed anything.

#45 · Client Interviewing and the Attendance Note

What makes a next steps section in the interview strong rather than vague?

Quick Reference

Concrete steps with owners and timescales: what you will do and by when, what the client must send and by when, and when you will next be in touch. Naming who does what is the difference between a promise and a plan.

#46 · Client Interviewing and the Attendance Note

How do you deal with costs in the interview?

Quick Reference

If the partner's email tells you to deal with costs, cover the basis of the charge, an estimate or range, VAT and disbursements, and a client care letter to follow setting out the complaints procedure. If costs are not in your instructions, one sentence promising a written estimate is enough.

#47 · Client Interviewing and the Attendance Note

How should you respond when a client becomes upset during the interview?

Quick Reference

Stop asking questions and acknowledge it, telling the client to take their time. Offer a pause or a break and do not talk over the silence. Return to the painful topic later and warn the client before you do.

#48 · Client Interviewing and the Attendance Note

How should you check that a client has understood your explanation?

Quick Reference

Ask the client to tell you their understanding in their own words. Asking whether something makes sense almost always gets a yes, so it proves nothing.

#49 · Client Interviewing and the Attendance Note

What does respecting diversity require in practice in the interview?

Quick Reference

It is an express criterion, so adjust your communication to the client rather than expecting the reverse: slow down, drop or explain jargon on first use, and offer practical adjustments such as writing key points down, a home visit or an interpreter. Do not guess at names, pronouns or family structures; ask.

#50 · Client Interviewing and the Attendance Note

A relative attending with the client keeps answering for them. What do you do?

Quick Reference

Treat it as a capacity and independence issue as well as a conduct one. Address it courteously, thanking the third party but explaining that you need to hear the instructions from the client themselves and may need to see the client alone for part of the meeting.

#51 · Client Interviewing and the Attendance Note

The client presses you for a figure or a guarantee. What is the three part reply?

Quick Reference

Acknowledge the question as reasonable, explain honestly what information you are missing, and commit to when and how you will answer it. A guess is a professional risk and a flat refusal damages the relationship.

#52 · Client Interviewing and the Attendance Note

If the client presses a second time for a number you cannot give, what can you still offer?

Quick Reference

Hold the line and give the shape of the answer rather than the number, for example that debts are paid before anything is distributed, so what the house sells for is not what the beneficiaries receive.

#53 · Client Interviewing and the Attendance Note

What is the commonest interview failure, and what is the mechanical cure?

Quick Reference

Talking over the client: interrupting answers, finishing sentences, delivering a speech. It is fatal because four of the five criteria depend on the client having space. After asking a question, close your mouth and count to three, and aim to speak for less than a third of the 25 minutes.

#54 · Client Interviewing and the Attendance Note

Why is confident detailed advice in the first ten minutes dangerous?

Quick Reference

The client script usually contains a fact that has not emerged yet and that changes the answer. A candidate who announces at minute six that the estate passes on intestacy looks foolish when a will made in Spain appears at minute fourteen. Gather first, advise second, and phrase preliminary advice provisionally.

#55 · Client Interviewing and the Attendance Note

State the three skills criteria for the attendance note.

Quick Reference

Record all relevant information, identify appropriate next steps, and provide client focused advice.

#56 · Client Interviewing and the Attendance Note

State the three application of law criteria for the attendance note.

Quick Reference

Apply the law correctly to the client's situation, apply the law comprehensively to the client's situation, and identify any ethical and professional conduct issues and exercise judgment to resolve them honestly and with integrity.

#57 · Client Interviewing and the Attendance Note

What is the difference between applying the law correctly and applying it comprehensively?

Quick Reference

Correctly means the law is right and applied to these facts rather than recited. Comprehensively means you cover every legal issue the facts raise, not just the first. Notes most often drop a grade on the second, by writing an excellent paragraph on the first issue and never reaching the second and third.

#58 · Client Interviewing and the Attendance Note

How do you earn the ethics criterion in an attendance note?

Quick Reference

Name the issue, state your judgment and state the action you will take. Ethics is pervasive and never flagged, so nobody will tell you a conduct point is there, and simply flagging it without resolving it is not enough.

#59 · Client Interviewing and the Attendance Note

How does negotiation typically appear in the interview and attendance note station?

Quick Reference

Usually as an offer already on the table, such as a buyer's reduced offer after a survey or a sibling proposing to buy out the others. Take instructions on what the client wants and would accept, record those parameters in the note, and advise on the strengths and weaknesses of the client's position rather than simply passing the offer on.

#60 · Client Interviewing and the Attendance Note

What headings should the handwritten attendance note use, and what presentation standard applies?

Quick Reference

Use headings for purpose of meeting, instructions and information obtained, advice given, legal analysis, ethical and professional conduct issues, and next steps, under a header giving the matter, reference, who attended and the time engaged. Marks are not lost for spelling, grammar or formatting that does not affect legal accuracy, clarity or certainty, so speed and completeness beat elegance.

#61 · Advocacy Before a Judge

In which practice areas is advocacy assessed, and on which oral days?

Quick Reference

Oral day 1 is a submission in Dispute Resolution and oral day 2 is a submission in Criminal Law and Practice. Advocacy is never assessed in Property Practice, Wills and the Administration of Estates or Business Law and Practice.

#62 · Advocacy Before a Judge

Can the advocacy station involve negotiation?

Quick Reference

No. Negotiation appears only in the client interview and attendance note, case and matter analysis or legal writing. There is no opponent in the advocacy room; you address a judge alone and ask for an order.

#63 · Advocacy Before a Judge

What must you extract from the partner's email at once in the advocacy station?

Quick Reference

Who your client is, which court you are appearing in, what application is being made, and which side you act for. Candidates lose marks every sitting by preparing for the wrong side or by addressing a judge at the wrong level.

#64 · Advocacy Before a Judge

What documents might the advocacy file contain in each practice area?

Quick Reference

In Dispute Resolution, a claim form and particulars of claim, a defence, a witness statement in support, correspondence and an order of the court. In Criminal Law and Practice, a charge sheet, a police summary, a record of previous convictions, a defence proof of evidence and a pre-sentence report.

#65 · Advocacy Before a Judge

Who plays and marks the judge in the advocacy station, and on what?

Quick Reference

A solicitor of England and Wales plays the judge and marks you on both skills and application of law. This differs from the client interview, where the assessor plays the client and marks skills only, so in advocacy both halves of the mark sheet are live before a qualified lawyer who knows the correct answer.

#66 · Advocacy Before a Judge

What should you conclude if the judge interrupts your submission with questions?

Quick Reference

Nothing negative. Judicial questions are part of the assessment design and how you handle them bears directly on two of the five skills criteria. An uninterrupted 15 minutes is unusual, so build a submission that survives being interrupted.

#67 · Advocacy Before a Judge

Why should you not write out a script during the 45 minutes of preparation?

Quick Reference

A read script destroys eye contact, collapses under the first question and reads as recitation rather than argument. Prepare headings and a short opening instead of full sentences.

#68 · Advocacy Before a Judge

How should the 45 minutes of advocacy preparation be divided?

Quick Reference

Five minutes on the email and the court, five minutes identifying the legal test and its limbs, fifteen minutes marshalling the facts limb by limb, ten minutes anticipating the judge, and ten minutes on structure and delivery.

#69 · Advocacy Before a Judge

Why write out the limbs of the legal test as a numbered list?

Quick Reference

Almost every advocacy station turns on a test with limbs or stages, and that numbered list becomes the skeleton of your submission. It is also what the marker checks when scoring you on applying the law correctly and comprehensively.

#70 · Advocacy Before a Judge

What does marshalling the facts limb by limb involve, and why does it matter?

Quick Reference

Go through the file with the limbs in front of you and place every fact under the limb it serves, noting the document and page. It satisfies the criterion of including all key relevant facts. A submission that states the test correctly and never touches the file is an application of law pass at best and a skills failure.

#71 · Advocacy Before a Judge

Which three judicial questions should you have answered before you stand up?

Quick Reference

What is your best point, what is your worst point, and what exactly are you asking me to do.

#72 · Advocacy Before a Judge

Give the correct mode of address for each level of judge.

Quick Reference

A District Judge, including a District Judge (Magistrates' Courts), is addressed as Judge. A Circuit Judge is Your Honour. A High Court judge is My Lord or My Lady, referred to as Your Lordship or Your Ladyship. A bench of lay magistrates is addressed through the chair as Sir or Madam, or collectively as Your Worships.

#73 · Advocacy Before a Judge

In the magistrates' court, to whom do you direct legal submissions?

Quick Reference

To the bench, not to the legal adviser or court clerk, even when one is present. Stand to address the court and remain standing while you speak.

#74 · Advocacy Before a Judge

What are the conventions on naming the parties in your submission?

Quick Reference

Refer to your client by name and title, to the other party by name, and to a defendant in criminal proceedings by surname with an appropriate title. Do not use first names alone, and do not say my client for fifteen minutes when the court would find a name easier to follow.

#75 · Advocacy Before a Judge

What must a good advocacy opening contain?

Quick Reference

Who you are, who you act for, the application being made, the shape of what follows, and the order sought. That takes about twenty seconds and scores at once under structure, persuasion and engagement.

#76 · Advocacy Before a Judge

What is the cheapest way to score on clear and logical structure?

Quick Reference

Signposting as you go, announcing when one point ends and identifying the next. A listener who cannot see the argument written down follows it only through signposts.

#77 · Advocacy Before a Judge

What is the correct sequence when the judge intervenes, including on a point you meant to take later?

Quick Reference

Stop speaking immediately, never talk over the bench, listen to the whole question, and answer it in one or two sentences before developing the point. If it was a later point, answer it now and say so, because saying you will come to it and moving on reads as evasion.

#78 · Advocacy Before a Judge

What do you say when you do not know the answer to a judicial question?

Quick Reference

Say so plainly and offer what you can from the material you do have. An honest answer scores. A confident invention is both a skills failure and an ethical failure, because you must never mislead the court.

#79 · Advocacy Before a Judge

What should you do when the bench has clearly accepted a point?

Quick Reference

Stop making it. Repetition after the judge has agreed with you wastes minutes from a 15 minute slot and irritates the person marking you.

#80 · Advocacy Before a Judge

How do you concede a weak point without abandoning your client?

Quick Reference

Concede the narrow point, then reframe the question for the court onto the ground where you win. Give away only what is genuinely lost. Denying the obvious loses credibility on everything else you say, and conceding everything means you have stopped acting for the client.

#81 · Advocacy Before a Judge

How does the duty not to mislead the court rank against the client's interests?

Quick Reference

It is absolute and it outranks the client's interests. If you know of a document, fact or procedural irregularity that must be drawn to the court's attention, draw it, and you cannot assert something you know to be untrue even on instructions.

#82 · Advocacy Before a Judge

How are ethical issues presented in the advocacy file?

Quick Reference

They are never flagged. Nothing in the file is labelled as an ethics point; it sits there looking like an ordinary detail, and the marker watches whether you spot it and resolve it honestly and with integrity.

#83 · Advocacy Before a Judge

How should an advocacy submission close?

Quick Reference

With the order you want, expressed as an order a judge could actually make, including consequential orders such as costs. Then offer a fallback order if the primary order is refused, and finish by inviting questions and sitting down.

#84 · Advocacy Before a Judge

Is offering a fallback position a sign of weakness?

Quick Reference

No. It is what a competent litigator does, and it shows the marker you have thought about what happens if you lose. Prepare the alternative order during your preparation time, not on your feet.

#85 · Advocacy Before a Judge

State the five skills criteria for advocacy.

Quick Reference

Use appropriate language and behaviour; adopt a clear and logical structure; present a persuasive argument; interact with and engage the court appropriately; and include all key relevant facts.

#86 · Advocacy Before a Judge

State the three application of law criteria for advocacy and the consequence of failing one half.

Quick Reference

Apply the law correctly to the client's situation, apply it comprehensively, and identify any ethical and professional conduct issues and exercise judgment to resolve them honestly and with integrity. Skills and application of law are weighted equally, so a polished submission on the wrong legal test fails half the mark sheet and an immaculate but mumbled recitation fails the other half.

#87 · Advocacy Before a Judge

Set out the order of a bail application.

Quick Reference

Open and identify the application, state the presumption in favour of bail and the ground of objection, answer each ground in turn with facts from the file such as community ties, settled address, employment, previous compliance and the strength of the evidence, then offer conditions that meet the specific risk raised, and close by asking for bail on those conditions.

#88 · Advocacy Before a Judge

Set out the order of a plea in mitigation.

Quick Reference

Open, confirm the plea and the credit due for it, address the offence by culpability and harm and where it sits in the guideline, take the aggravating features head on, then turn to personal mitigation, remorse, employment, health, dependants and progress. If custody is in play, address the effect of immediate custody and why a suspended sentence with requirements would meet the purposes of sentencing, then close with the specific disposal sought.

#89 · Advocacy Before a Judge

How do you structure a submission for summary judgment, an interim injunction and relief from sanctions?

Quick Reference

For summary judgment, state the test and apply it to the pleaded defence point by point, dealing expressly with the second limb of no other compelling reason for a trial, which candidates forget. For an injunction, take the court through serious issue to be tried, adequacy of damages for either side and the balance of convenience, offering the cross undertaking in damages unasked. For relief from sanctions, use the three stages: seriousness of the breach, the reason for it stated honestly, and all the circumstances including efficient conduct at proportionate cost and enforcing compliance.

#90 · Advocacy Before a Judge

Must you cite authorities in the advocacy station?

Quick Reference

No. You are not required to recall case names or cite statutory or regulatory authorities, except where the name is simply the normal term for the rule or step, such as CPR Part 36, a Part 24 application or a Part 8 claim. State the test accurately in your own words: a correct statement without a citation scores, and a citation attached to a misstated test does not.

#91 · Case and Matter Analysis

How long is the case and matter analysis station, and in which practice areas can it appear?

Quick Reference

It is a written, computer based station of exactly 60 minutes. It is sat three times across the three written half days, so across a full delivery it can appear in Criminal Law and Practice, Dispute Resolution, Property Practice, Wills and the Administration of Estates, and Business Law and Practice.

#92 · Case and Matter Analysis

What is the task in case and matter analysis?

Quick Reference

You are given a covering email or memorandum from a partner plus a bundle of documents, and must produce a written report to the partner setting out a legal analysis of the case and advice for the client. Where the matter involves a dispute or a deal to be settled, the report may also be required to set out options and strategies for negotiation.

#93 · Case and Matter Analysis

Should you always include negotiation content in a case and matter analysis report?

Quick Reference

No. Negotiation content may be required but will not necessarily be, so never assume it is wanted unless the partner's instructions ask for it.

#94 · Case and Matter Analysis

What are the two structural failures that cost most of the marks in this station?

Quick Reference

Reciting the file back to the partner instead of analysing it, and giving a single option instead of comparing options and setting out the consequences of each. Both are structural rather than legal failures.

#95 · Case and Matter Analysis

Who is the audience for the report, and what register does that require?

Quick Reference

The report goes to a partner, who is a solicitor. They do not need the law in lay terms, reassurance or a paragraph thanking them for their instructions. The register is analytical: propositions of law stated plainly, applied to identified facts, with conclusions.

#96 · Case and Matter Analysis

If the report is written to a partner, how can it also be client focused?

Quick Reference

The format is a note to a professional and the content is advice to a person. Client focused advice names the client's commercial or personal objective, weighs the options against it, and says what is recommended and why. Hold both at once.

#97 · Case and Matter Analysis

Why must the client's stated aim appear expressly in your analysis?

Quick Reference

Client focus is a marking criterion, and the client's aim drives the recommendation. A technically excellent report recommending four years of litigation to a client who has said they cannot afford it is not client focused, however well the law is applied.

#98 · Case and Matter Analysis

How should the 60 minutes be allocated?

Quick Reference

Fifteen minutes to read and annotate, five minutes to plan the structure, thirty five minutes to write, and five minutes to check.

#99 · Case and Matter Analysis

What should you read first in the 15 minute reading period, and what should you highlight?

Quick Reference

Read the partner's instructions first, twice, because anything you write outside them earns nothing. Then read the bundle using the platform's highlighter, marking dates, sums of money, names of parties, defined terms in any contract, and anything resembling a deadline or a limitation period.

#100 · Case and Matter Analysis

What does the five minute planning step consist of, and what mistake does it prevent?

Quick Reference

Type your headings into the answer box before writing any prose. It costs almost nothing and prevents the most expensive mistake in this station, which is discovering at minute 52 that you have written three paragraphs on liability and none on remedy.

#101 • Case and Matter Analysis

What are you checking for in the final five minutes?

Quick Reference

There is no spell check, so you check meaning rather than typography: whether the recommendation actually follows from your analysis, whether every option has a consequence attached, whether you have addressed ethics if the papers raised it, and whether the sums and dates match the documents.

#102 • Case and Matter Analysis

If you fall behind the clock in case and matter analysis, what do you cut?

Quick Reference

Cut the length of your analysis of each issue rather than dropping an issue. A short paragraph on limitation earns marks; no paragraph on limitation earns none.

#103 • Case and Matter Analysis

What goes in the heading and purpose sections of the report?

Quick Reference

The heading names the report, the client, the matter, the person it is to and from, and the date, with the file reference. The purpose is one or two sentences saying what the report does and what it does not do, for example excluding an issue on which documents are awaited.

#104 • Case and Matter Analysis

What belongs in the summary of key facts, and what does not?

Quick Reference

Only the facts that carry legal weight, usually four to eight sentences. A fact belongs there if you will rely on it later in the analysis. It is not a chronology of the file, and where a fact is disputed or unknown you say so rather than pretending the file is clearer than it is.

#105 • Case and Matter Analysis

Why list the legal issues as numbered one line entries?

Quick Reference

It gives the partner the shape of the matter in fifteen seconds and gives the assessor a visible map of how comprehensive your identification of the issues has been. List them in the order you will analyse them.

#106 • Case and Matter Analysis

What must each issue analysis section contain?

Quick Reference

State the legal principle, apply it to the identified facts, and reach a conclusion, including how confident you are in it. Say what evidence would strengthen or weaken the position. Draw the inference yourself rather than leaving it to the partner.

#107 · Case and Matter Analysis

For each option you set out, what four things must you give?

Quick Reference

The likely outcome, the cost in money and time, the risk, and the effect on anything the client has said they care about.

#108 · Case and Matter Analysis

Give examples of realistic options in a dispute and in a transaction.

Quick Reference

In a dispute: doing nothing, writing a letter before claim, referring the matter to mediation, making a Part 36 offer, issuing proceedings, or accepting a compromise already on the table. In a transaction: proceeding on the current terms, requiring an indemnity, requiring a price reduction, requiring a deed of variation, or withdrawing.

#109 · Case and Matter Analysis

What happens if your report sets out three options but declines to choose one?

Quick Reference

It fails the client focused advice criterion, because the partner is left doing the work you were asked to do. State which option you recommend and give the reasons in terms of the client's objective, not just legal merit.

#110 · Case and Matter Analysis

What makes a next steps section adequate in a case and matter analysis report?

Quick Reference

It must be practical, sequenced and attributable: who does what, by when, in numbered steps, including diarising any limitation date.

#111 • Case and Matter Analysis

Should the report contain an ethics heading even when nothing turns on it?

Quick Reference

Yes. Ethical and professional conduct issues get a separate heading, always present, even if only to record that none arises.

#112 • Case and Matter Analysis

Can you depart from the default report structure?

Quick Reference

Yes, and if the partner's instructions ask for a specific structure you follow the instructions. Departing from a good default is a choice; having no default at all is a handicap.

#113 • Case and Matter Analysis

What earns credit under applying the law correctly?

Quick Reference

Accuracy: identifying the correct legal principles and applying them accurately to the facts. Stating the wrong test, applying the right test to the wrong facts, or reaching a conclusion the law does not support loses marks here however much you have written.

#114 • Case and Matter Analysis

What earns credit under applying the law comprehensively?

Quick Reference

Coverage: the extent and completeness of your identification and analysis. Did you find all the issues or only the obvious one, liability as well as quantum, the limitation point, the counterclaim, the interest, the costs consequences? A report can be entirely correct on the two issues it addresses and still fail comprehensiveness because there were five.

#115 • Case and Matter Analysis

What is the scheduling rule that follows from the comprehensiveness criterion?

Quick Reference

Breadth before depth. List every issue you can see in the planning minutes, including the weak ones, and spread writing time across all of them. Four paragraphs of solid analysis on four issues beat sixteen paragraphs on one, and a single sentence identifying a weak point and dismissing it with a reason still shows you saw it.

#116 • Case and Matter Analysis

What must you do with legal materials supplied in the bundle?

Quick Reference

Use them. Where the assessment gives you standard conditions of sale, an extract from articles of association or similar materials, you are expected to apply them, and failing to apply a document that has been handed to you is a visible gap in the report.

#117 · Case and Matter Analysis

In negotiation analysis, what is the difference between a position and an interest?

Quick Reference

A position is what a party says they want; an interest is why they want it. A seller's position may be that they will not go below a stated price, while their interest is completing another purchase on a fixed date, which a deferred or restructured price could also satisfy. Positions collide; interests often overlap, and that overlap is where a deal lives.

#118 · Case and Matter Analysis

Why assess each side's best and worst alternatives to a negotiated agreement?

Quick Reference

They determine how much pressure each side is under. A client with a strong, well documented claim within limitation against a solvent defendant can negotiate firmly; a client facing expensive proceedings on contested evidence against a company with no assets cannot, and telling the partner so is client focused advice.

#119 • Case and Matter Analysis

What are opening, target and reserve positions, and what else should be traded?

Quick Reference

The opening is where you begin, justifiable on the facts and not so extreme it ends the conversation; the target is the realistic outcome sought; the reserve is the point below which the client should walk away and take their best alternative. Give figures and reasoning, and add non monetary terms such as timing of payment, confidentiality, continuing supply, an apology, or the treatment of costs and interest.

#120 • Case and Matter Analysis

What are the ethical limits on a solicitor negotiating, and what do the NDA and SLAPP warning notices add?

Quick Reference

You may press hard, decline to answer, and need not volunteer information helping the other side, but you must not mislead: no false statement of fact, no leaving a statement uncorrected once it becomes false, no permitting a misapprehension you created, and no taking unfair advantage of a third party, which is especially live where they are unrepresented. An NDA must not prevent reporting misconduct to a regulator or a crime to the police or improperly deter disclosure to a court, and aggressive correspondence designed to silence rather than resolve engages the SLAPP warning notice.

#121 · Legal Research and the Research Note

How long is the SQE2 legal research station, and how is it delivered?

Quick Reference

Legal research lasts exactly 60 minutes and is a written station delivered on the Pearson VUE computer platform. There is no spell check, but a highlighter is available and you should use it on the source bundle. No books or notes may be brought in, because every source you need is provided.

#122 · Legal Research and the Research Note

In the legal research station, who is your written output addressed to, and what form does it take?

Quick Reference

You write an internal note to the partner who instructed you, not a letter to the client and not an email to the other side. The note sets out your legal reasoning, identifies the key sources you relied on, and tells the partner what advice they should give the client.

#123 · Legal Research and the Research Note

Does the legal research station require you to record a research trail?

Quick Reference

No. You are not asked to record databases searched, indexes consulted or search terms used. The assessor marks your reasoning and your advice, not your method, so minutes spent writing a trail buy nothing.

#124 · Legal Research and the Research Note

What is the decoy source trap that defines the legal research station?

Quick Reference

You are given a bundle of primary and secondary sources, and some of the sources provided may not be relevant. Identifying which sources are relevant, and applying only those, is itself part of the assessment. Unlike every other station, you cannot assume that what you are given matters.

#125 · Legal Research and the Research Note

What is the commonest way candidates fail the legal research station?

Quick Reference

They treat the bundle as a reading list to be summarised, working through the sources in the order given and paraphrasing each one. That gives equal weight to a binding Court of Appeal decision and to an irrelevant first instance case, and scores badly on identifying and using relevant sources and usually on applying the law correctly too.

#126 · Legal Research and the Research Note

In what order should you read the exercise materials in the legal research station?

Quick Reference

Read the partner's question first, before you read a single source. Then read the bundle knowing what you are looking for. A source earns its place in your note only by answering the question the partner asked about the facts this client has.

#127 · Legal Research and the Research Note

Where does primary legislation sit in the hierarchy of authority, and what two things must you check about it?

Quick Reference

An Act of Parliament comes first and binds every court, so if a statute answers the point it is your starting authority. Check commencement, because a provision enacted but not yet in force decides nothing for a client acting today. Check amendment too, because a section substituted or repealed by a later Act cannot be applied in its old form.

#128 · Legal Research and the Research Note

Where do statutory instruments and procedural rules sit in the hierarchy of authority?

Quick Reference

Secondary legislation, meaning statutory instruments made under a power in an Act, sits below primary legislation and binds in the same way as the parent Act, within the limits of the power that made it. Procedural rules such as the Civil Procedure Rules and the Criminal Procedure Rules sit here in practical terms, supplemented by practice directions.

#129 · Legal Research and the Research Note

Which courts bind which in England and Wales, for the purposes of a research note?

Quick Reference

The Supreme Court binds every court below it. The Court of Appeal binds the High Court, the county court and the magistrates' courts, and generally binds itself. High Court decisions bind the county court and magistrates' courts and are strongly persuasive at first instance but do not bind another High Court judge. County court and first instance tribunal decisions bind nobody.

#130 · Legal Research and the Research Note

Within a judgment, what part actually binds?

Quick Reference

Only the ratio decidendi binds. Obiter comment persuades but does not compel, however eminent the judge, and a dissenting judgment does not bind at all. Say plainly in your note when you are relying on something that is persuasive only.

#131 · Legal Research and the Research Note

How should you treat a practitioner text or encyclopaedia extract included in a research bundle?

Quick Reference

Secondary sources are not authority. They are a route to authority and a guide to how practitioners read it. If the bundle gives you a practitioner text alongside the statute it summarises, cite the statute and use the text only to support your reading of it.

#132 · Legal Research and the Research Note

What are the five checks to run on every source in a research bundle?

Quick Reference

Jurisdiction, currency, commencement, level of court, and subject matter. Each check is a way a source can look authoritative while being useless to this client, and running all five is how you separate authority from decoy.

#133 · Legal Research and the Research Note

What is the jurisdiction check, and what is the reverse trap hidden inside it?

Quick Reference

Ask whether the source is from England and Wales, because a Scottish, Northern Irish, Irish, Australian or Canadian decision is at best persuasive. The reverse trap is Wales: it is not a separate jurisdiction, but the law applying in Wales can differ from the law applying in England, so a Welsh provision may be included to see whether you noticed the client's property is in Cardiff rather than Chester.

#134 · Legal Research and the Research Note

What is the currency check on a source?

Quick Reference

Ask whether the source has been superseded. Look for a later case in the bundle that overrules or departs from an earlier one, for a statute that has replaced the common law rule, and for a headnote recording subsequent history. Note too that a case a later court has distinguished on facts materially like your client's remains good law but no longer governs your point, so it is not the authority you want.

#135 · Legal Research and the Research Note

What is the commencement check, and why is an uncommenced provision such a common decoy?

Quick Reference

Read commencement sections and any transitional provisions to confirm the rule is actually in force for this client. An uncommenced or transitionally limited provision reads exactly like good law, so it tempts a candidate who skipped the front and back of the extract. A rule applying only to transactions entered into after a given date does not help a client who contracted before it.

#136 · Legal Research and the Research Note

Why is the subject matter check the subtlest of the five decoy checks?

Quick Reference

A case on the same statute but a different subsection, or the same doctrine in a different factual context, looks entirely right until you read it closely. Everything about the citation, the court and the language matches, so only reading the operative reasoning against the partner's actual question exposes it.

#137 · Legal Research and the Research Note

Should you tell the partner in your note that you ruled a source out, and at what length?

Quick Reference

Yes, in one short line, for example that a named extract concerns a fixed term tenancy and does not assist here. That shows the assessor you read the source and exercised judgment. Do not write a paragraph rejecting each irrelevant source, and only mention a source tempting enough that the partner might otherwise raise it.

#138 · Legal Research and the Research Note

How should the first 20 minutes of the 60 minute research station be spent?

Quick Reference

Minutes 0 to 5: read the partner's email twice, write the question in your own words as a heading, number multiple questions, and note any deadline, figure or advice the partner has already given the client. Minutes 5 to 20: read the bundle with that question in mind, highlighting as you go, and note for each source what it is and whether it is in, out or doubtful, without reading anything twice.

#139 · Legal Research and the Research Note

Between minutes 20 and 30 of the research station you should do the step most candidates skip. What is it?

Quick Reference

Decide the answer, and write the short answer in a single sentence before you write anything else. If you cannot write that sentence, you have not finished reasoning, and more writing will not fix it. Skipping this step is why so many notes wander.

#140 · Legal Research and the Research Note

What should you check in the final eight minutes of the research station?

Quick Reference

Check that every source cited is one you actually applied, that the advice answers the question asked, that your caveats are honest, and that any ethical issue has been resolved rather than merely mentioned. Spelling and grammar errors that do not affect legal accuracy, clarity or certainty do not cost marks, but a typo inside a citation or a figure affects all three.

#141 · Legal Research and the Research Note

Name the seven parts of the reusable research note structure, in order.

Quick Reference

The question asked; the short answer; the relevant law with citations; application to the client's facts; the advice the partner should give the client; gaps and caveats; and ethical and professional conduct issues. The same skeleton suits any practice area and stops you drifting.

#142 · Legal Research and the Research Note

What belongs in the short answer section of a research note?

Quick Reference

One sentence, occasionally two, giving the conclusion rather than a preview of your reasoning. A partner reading only that paragraph should be able to pick up the telephone. If the answer is conditional, say so in the same sentence, for example yes provided the notice was served before completion.

#143 · Legal Research and the Research Note

Which section of the research note should be the longest, and what does it have to contain?

Quick Reference

Application to the client's facts is the heart of the note and should be the longest section. Name the client, use the dates, figures and documents from the file, and for each element of the test say which fact satisfies it. Where an element is not satisfied, say so and say what would change that.

#144 · Legal Research and the Research Note

What does client focused advice mean in a research note, given the note is written to a partner?

Quick Reference

The advice section must be written so the partner can pass it straight on to the client. Say what the client should do, what the options are, what each costs or risks, and what you recommend. Client focused means answering the client's problem, not describing the law that surrounds it: a client asking whether they can withhold the last instalment wants to be told whether they can.

#145 · Legal Research and the Research Note

What is the difference between an honest caveat and vague hedging in a research note?

Quick Reference

An honest caveat names the specific thing you do not know: a missing document, a fact to check with the client, a limitation date to confirm, an unsettled point of authority. That gains marks. Vague hedging that covers everything and commits to nothing loses them.

#146 · Legal Research and the Research Note

How can a conduct issue arise inside a legal research task, and what must your note do about it?

Quick Reference

The partner may ask you to find support for a conclusion the sources do not support, a conflict may emerge between two clients of the firm, or material may raise confidentiality or money laundering concerns. Name the issue, identify the SRA Principle or Code duty engaged, and say what should be done. Spotting the issue and then failing to resolve it scores no better than not spotting it.

#147 · Legal Research and the Research Note

What should your research note say if the facts raise no ethical issue at all?

Quick Reference

Do not invent one. A short line confirming that you considered professional conduct and identified no issue on these facts is enough. A manufactured conduct point wastes words and shows poor judgment.

#148 · Legal Research and the Research Note

Why is legal research the one SQE2 station where you can be expected to cite authority, and how should you cite?

Quick Reference

Everywhere else you are not required to recall or cite authority, except where a case or provision is simply the normal name for the rule, such as *Rylands v Fletcher*, CPR Part 36 or a section 25 notice. Here the sources are in front of you, so citation is part of the job. Cite statutes by short title, year and provision, instruments by name and year then regulation number, rules by rule number, and cases by party names with the citation and court where the bundle gives them.

#149 · Legal Research and the Research Note

What are the two rules governing citation length in a research note?

Quick Reference

First, cite the narrowest provision that does the work, because a reference to a whole Act tells the partner nothing. Second, do not quote at length: twenty words from the operative part of a section or from a ratio can earn their place, but three copied paragraphs demonstrate typing rather than analysis and squeeze out the application section where the marks are.

#150 · Legal Research and the Research Note

The research point falls outside the Functioning Legal Knowledge you revised for SQE1. What does that mean and what should you do?

Quick Reference

It is deliberate, because the station exists to test whether you can handle an unfamiliar problem with the sources provided. Read the operative words slowly, identify the conditions the provision imposes, list them and check each against the facts. An unfamiliar statute answered by careful reading scores far better than a half remembered general principle, which is exactly what the decoys are designed to attract.

#151 • Legal Writing

How long is the legal writing station and what do you produce?

Quick Reference

Legal writing lasts exactly 30 minutes on the Pearson VUE platform, the shortest assessment in SQE2. You produce one letter or one email that could be sent as it stands, in response to an email from a partner, not an abstract piece of advice to the partner about strategy.

#152 • Legal Writing

Why is the clock the first thing that makes legal writing different from the other written stations?

Quick Reference

Case and matter analysis and legal research each give you 60 minutes, and legal drafting gives you 45. Legal writing gives you 30 minutes to read, plan, write and check. Candidates who approach it as a shorter case and matter analysis run out of time with the advice half delivered.

#153 · Legal Writing

Who can the recipient of a legal writing letter be?

Quick Reference

The recipient may be a client, a third party, the other side to litigation or to a client transaction, or a partner within your own organisation. The identity of the recipient controls almost everything about the document, and it changes from station to station.

#154 · Legal Writing

What are the four skills criteria for legal writing, and what do they tell you about where the marks sit?

Quick Reference

Include relevant facts; use a logical structure; advice and content is client and recipient focused; and use clear, precise, concise and acceptable language which is appropriate to the recipient. Two of the four are about the recipient, which is more weight on audience than any other SQE2 station gives.

#155 • Legal Writing

What are the three application of law criteria for legal writing?

Quick Reference

Apply the law correctly to the client's situation; apply the law comprehensively to the client's situation; and identify any ethical and professional conduct issues and exercise judgment to resolve them honestly and with integrity. Skills and application of law are weighted equally across SQE2 as a whole.

#156 • Legal Writing

There is no spell check and no marking criterion for presentation. What errors still cost you marks?

Quick Reference

You should not lose marks for spelling, grammar or formatting errors that do not affect legal accuracy, clarity or certainty. A typo in a party's name, a missing word not, a wrong figure or a wrong date does affect all three, so check names, numbers, dates and negatives rather than hunting stray commas.

#157 · Legal Writing

How should the 30 minutes of the legal writing station be divided?

Quick Reference

Roughly 6 minutes reading and planning, 20 minutes writing, and 4 minutes checking. Rehearse the division until it is automatic, because on the day you will not have spare attention to invent a plan.

#158 · Legal Writing

What should you do in the first six minutes of the legal writing station?

Quick Reference

Read the partner's email twice before anything else, because it gives the recipient, the purpose and the boundaries of the task, and highlight the instruction sentences. Then skim the attachments only for the facts the instruction needs. Spend the last minute or two typing a skeleton of five or six headings straight into the answer box.

#159 · Legal Writing

Why should you write straight through in the 20 minute writing block rather than polishing as you go?

Quick Reference

Marks for structure and completeness are much larger than marks for elegance. A letter that stops before the next steps section has thrown away a skills criterion and a large part of the application of law marks, so finishing beats refining.

#160 · Legal Writing

What five checks should you run in the final four minutes of the legal writing station, in order?

Quick Reference

Is every party named correctly; is every figure and date right; is every negative the right way round; have I answered every part of the partner's instruction; and have I dealt with the ethical point. Nothing else.

#161 • Legal Writing

Name the seven parts of the reusable legal writing structure.

Quick Reference

Salutation appropriate to the recipient; purpose; background limited to what the recipient needs; the advice or the position; options and consequences; the ask or next steps; and a sign off matching the salutation. The same structure works whoever the recipient is.

#162 • Legal Writing

What does the purpose paragraph at the top of a legal writing letter do?

Quick Reference

In one or two sentences it says what the letter is about and what it does, for example that you are writing to advise on the client's options following a landlord's notice of a stated date and to recommend a course of action. A reader who knows within ten seconds why the document exists reads the rest properly.

#163 · Legal Writing

How much background should a legal writing letter contain?

Quick Reference

Only as much as this recipient needs. A client who lived through the facts needs one line of orientation, a partner who has never seen the file needs a short factual summary, and the other side's solicitor needs only the facts you are choosing to put to them.

#164 · Legal Writing

Why is listing options without evaluating them not good enough?

Quick Reference

The recipient focused criteria require you to set out the realistic courses of action with the practical consequence, cost and risk of each, and to give a recommendation where the partner has asked for one. A bare list leaves the decision unmade and is not client focused.

#165 · Legal Writing

What must the closing section of a legal writing letter contain?

Quick Reference

A precise ask: exactly what you need from the recipient and by when, for example asking them to confirm by 4pm on a named date whether they wish you to accept. A letter that ends without an ask has not done its job, and please do not hesitate to contact me is not an ask.

#166 · Legal Writing

How do the salutation and sign off pair up in a legal writing letter?

Quick Reference

Yours sincerely goes with a named addressee such as Dear Mrs Achebe or Dear Ms Whitfield; Yours faithfully goes with Dear Sirs or Dear Sir or Madam. Add your name and the firm. It is a small point but the marks are free.

#167 · Legal Writing

Why can two letters resting on identical legal analysis be graded completely differently?

Quick Reference

Because the recipient criteria are marked separately from the application of law criteria. A letter to a distressed lay client, a letter to the other side's solicitor and an internal note to a partner are three different documents, and getting the law right does not earn the recipient marks.

#168 · Legal Writing

How should you handle technical vocabulary when writing to a lay client?

Quick Reference

Assume no legal knowledge and convert the terms into plain words, for example saying the seller must transfer the property free from any rights you do not know about rather than full title guarantee. Where a term genuinely is the name of the thing, such as a Part 36 offer or a section 25 notice, name it once and explain it in a clause.

#169 · Legal Writing

How should a letter to a lay client handle bad news and the client's feelings?

Quick Reference

Explain the outcome first and then the reason, and be honest about bad news rather than softening a weak case into a strong one, because a client misled into litigating has been badly served and the marker will see it. Where the file shows distress, acknowledge it briefly and without gushing, then give the client a decision framed so they can actually make it.

#170 · Legal Writing

What register suits a letter to the other side's solicitor?

Quick Reference

Formal, courteous, factual and firm. Technical terms are appropriate because you are addressing a professional, and shorthand saves words. State your client's position, the basis for it and what you require, without aggression, sarcasm or personal comment.

#171 · Legal Writing

What may you never do in correspondence with the other side, however forcefully you are instructed to put your client's case?

Quick Reference

You must not overstate the merits or assert something you know to be untrue, because you must not mislead another party or their representative. You must not disclose privileged material or anything the client has not authorised you to reveal.

#172 · Legal Writing

When is an open letter the right vehicle in correspondence with the other side?

Quick Reference

An open letter can be shown to the court, so it is right for setting out your client's case, a formal demand, a request for documents, and anything you would be happy for a judge to read. Decide whether your letter is open or without prejudice before you type the first line.

#173 · Legal Writing

What is a without prejudice letter, and what does the label without prejudice save as to costs add?

Quick Reference

A without prejudice letter is a genuine attempt to settle a dispute, and the protection means it generally cannot be put before the court as evidence of an admission if settlement fails. Marking it without prejudice save as to costs keeps it protected during the negotiation but allows it to be shown to the court on the question of costs after judgment.

#174 · Legal Writing

Does writing without prejudice at the top of a letter create the protection?

Quick Reference

No. The label does not create the protection by itself: a letter so marked that makes no settlement proposal, or that simply asserts the client's case, may not attract it, and a genuine settlement proposal may be protected even if the label was forgotten. It is the substance of a genuine attempt to settle that matters.

#175 · Legal Writing

The partner asks you to make an offer to settle. Why is writing it as open correspondence a serious error?

Quick Reference

An open letter can be put before the judge, so setting out a concession or explaining how weak your own client's case is hands the other side a document they can rely on. It is an error of judgment, not a formatting slip, and it will be marked as one.

#176 · Legal Writing

A beneficiary of an estate writes to you asking for advice, and your firm acts for the executors. How do you reply?

Quick Reference

Tell them plainly that you act for the executors, that you cannot advise them, and suggest they take their own independent advice. You must not mislead anyone into thinking you act for them, and confidentiality is owed to your client rather than to the smooth running of the correspondence, so keep to information you are authorised to give.

#177 · Legal Writing

How should an internal note to a partner differ from a letter to a client?

Quick Reference

It is the most technical and least explanatory of the four registers. Your reader is a solicitor, so use proper legal terminology without translation, be short, and lead with the answer: issue, short answer, analysis, risks, recommendation, next steps, and anything you need the partner to decide.

#178 · Legal Writing

What can you say to a partner in an internal note that you would not put in a letter, and what limit still applies?

Quick Reference

This is the recipient to whom you can say the uncomfortable things: that the client's account is inconsistent with the documents, that there is a conflict of interest, that a limitation date is close, or that the firm should consider whether it can continue to act. A note that hedges those helps nobody. It is still a document that could be disclosed in some circumstances and it is still marked for accuracy.

#179 · Legal Writing

A partner's instruction, if followed exactly, would have you mislead the recipient or take unfair advantage of an unrepresented person. What is the right response in a legal writing station?

Quick Reference

The right response is almost never to refuse to write anything. Write the letter properly, leave out the improper element, and tell the partner what you have done and why, either in the letter itself where the partner is the recipient or in a short covering note. Ethics are pervasive and never flagged, so no line will tell you to consider your obligations.

#180 · Legal Writing

What length should a legal writing answer be, and what is the final test to apply before submitting?

Quick Reference

Concise is a marked criterion, so in 20 minutes of writing aim for roughly 400 to 600 words, with short sentences, one idea per paragraph, and headings once the content has more than two strands. The final test is whether this recipient could read it once and know exactly what has happened, what it means for them, and what they now have to do.

#181 • Legal Drafting

How long is the legal drafting station, and what three forms can the task take?

Quick Reference

Legal drafting lasts exactly 45 minutes on the Pearson VUE platform, with a highlighter and no spell check. You may be asked to draft from a precedent supplied in the materials, to amend a document already drafted, or to draft from scratch with neither a precedent nor a draft in front of you. You are asked to produce the document itself, not to advise.

#182 • Legal Drafting

What are the two skills criteria for legal drafting?

Quick Reference

Use clear, precise, concise and acceptable language, and structure the document appropriately and logically. Legal drafting is marked on five criteria in total, fewer than any other written station.

#183 · Legal Drafting

What are the three application of law criteria for legal drafting?

Quick Reference

Draft a document which is legally correct; draft a document which is legally comprehensive; and identify any ethical and professional conduct issues and exercise judgment to resolve them honestly and with integrity.

#184 · Legal Drafting

Which criteria that appear in other written stations are missing from legal drafting, and why?

Quick Reference

There is no client focused advice criterion and no include relevant facts criterion, because the output is a document rather than advice. Nobody reads a share purchase agreement to be advised; they read it to know what the parties agreed and what happens if it goes wrong.

#185 · Legal Drafting

Why should you never explain your reasoning inside a drafted document?

Quick Reference

A sentence saying a clause has been included to protect the seller because the buyer raised concerns is commentary, not a clause, and it should be stripped out. If the instructions ask for a covering note or drafting note, the reasoning goes there and only there; if they do not ask for one, do not write one.

#186 · Legal Drafting

Why must you not soften drafted language for a lay reader, when legal writing rewards exactly that?

Quick Reference

The audience for a drafted document is whoever must one day enforce it: the other side's solicitor, a judge, a Land Registry caseworker or a court office. Precision beats accessibility every time, and reasonable endeavours and best endeavours mean different things, so choosing the wrong one is a legal error rather than a stylistic one.

#187 · Legal Drafting

Why does an elegant but legally ineffective clause still fail the drafting station?

Quick Reference

The weight sits on legally correct, meaning the clause does in law what it is meant to do, and legally comprehensive, meaning nothing the instructions require has been left out. A penalty clause a court will not enforce, a witness statement without a statement of truth, or a will clause that fails for uncertainty all fail those criteria however good the language is.

#188 · Legal Drafting

Negotiation is never assessed in legal drafting. What two drafting habits does that rule out?

Quick Reference

Do not draft clauses hedged with the other side's likely objections, and do not offer alternative wordings in square brackets hoping the assessor will choose one. Commit to a position and draft it. Negotiation appears only in interview and attendance note, case and matter analysis, or legal writing.

#189 · Legal Drafting

How should the 45 minutes of the drafting station be divided?

Quick Reference

Minutes 0 to 8 reading the instructions and file, minutes 8 to 14 planning the skeleton of clause headings, minutes 14 to 38 drafting, and minutes 38 to 45 checking. Most avoidable marks are lost by not having those last seven minutes.

#190 · Legal Drafting

What three questions should you write down in the first eight minutes of a drafting task?

Quick Reference

What document am I producing, who are the parties, and what must this document achieve for my client. Read the partner's email twice first, because it tells you which document and which clauses are wanted and which are not, and skim any supplied precedent for shape rather than word by word.

#191 · Legal Drafting

Why is listing the clause headings before drafting anything worth four minutes?

Quick Reference

The list alone secures the structure criterion and prevents the commonest structural failure, which is drafting the interesting clause first and then bolting the rest on around it.

#192 · Legal Drafting

You are 30 minutes in and one clause is resisting you. What should you do?

Quick Reference

Leave a marker and move on to the next clause. An incomplete document with all the required clauses present in outline scores better on comprehensiveness than a perfect half, so never polish at the cost of finishing.

#193 · Legal Drafting

What three passes make up the checking stage of a drafting task?

Quick Reference

Read the document once against the instructions, ticking off each requested item; once for internal consistency of defined terms, cross references, numbering and party names; and once for the ethics point if you have not already dealt with it.

#194 · Legal Drafting

How should parties be identified and labelled in a drafted document?

Quick Reference

Name the document for what it is, then identify each party fully and consistently by full legal name, with a company number for a company and a registered office or address. Give each party a short label and use it without deviation: if the buyer is defined as the Buyer, never later write the purchaser.

#195 · Legal Drafting

What is the discipline of a definitions clause?

Quick Reference

Define a term where it will be used more than once and where its meaning is not obvious, define it once in one place, and capitalise it throughout so a reader can see it is defined. Do not define a term you never use, and do not use the same word in lower case elsewhere meaning something slightly different.

#196 · Legal Drafting

What do recitals do, and what must never be hidden in one?

Quick Reference

Recitals set out the background and the parties' purpose, and belong in agreements, deeds and transfers where context aids interpretation. They do not create obligations, so never hide an obligation in one: a recital saying the Seller will maintain the boundary fence gives nobody a right to anything. A witness statement, defence statement or board minute has no recitals.

#197 · Legal Drafting

What do shall or must, may, is entitled to, and will each do in a drafted clause?

Quick Reference

Shall or must imposes an obligation on a named person, and you should pick one convention and hold to it. May confers a discretion or permission and never imposes a duty. Is entitled to confers a right. Will states a future fact and is a poor way to impose a duty.

#198 · Legal Drafting

Why is passive drafting the most common cause of an ineffective clause?

Quick Reference

Every obligation needs a named actor. Notice shall be given leaves it open who must give it, so nobody is bound; the Tenant must give notice to the Landlord binds a named party and can be enforced.

#199 · Legal Drafting

What four things must be clear when you draft a condition precedent?

Quick Reference

What the condition is, who must satisfy it, by when, and what happens if it is not satisfied by that date. A condition precedent with no consequence for failure is a trap. Typical settings are completion of a company purchase conditional on regulatory consent, or exchange conditional on a satisfactory search result.

#200 · Legal Drafting

What is the difference between a warranty and an indemnity, and why does it matter for the legally correct criterion?

Quick Reference

A warranty is a contractual statement of fact, so if it is untrue the innocent party sues for breach and must prove and mitigate its loss. An indemnity is a promise to reimburse a defined loss pound for pound, generally outside the ordinary rules on remoteness and mitigation. They are not interchangeable, so using one where the instructions call for the other is a legal error, not a preference.

#201 · Legal Drafting

What are the boundary provisions of a drafted document, and why do they matter to marks?

Quick Reference

They are the clauses governing the edges of the relationship: termination on stated grounds by a stated party on stated notice with stated survival, notices with addressee, address, method and deemed service, governing law and jurisdiction where there is a foreign element, and any liability caps. Candidates who run out of time drop them first, which costs comprehensiveness marks.

#202 · Legal Drafting

What are the execution requirements you should know for a deed, a company, an individual, and a statement of case?

Quick Reference

A deed must be clear on its face that it is a deed, be validly executed, and be delivered. A company may execute by two authorised signatories or by a director in the presence of a witness. An individual's signature on a deed must be witnessed. A witness statement and a statement of case each end with a statement of truth, the latter signed by the party or its legal representative.

#203 · Legal Drafting

What must a compliant Part 36 offer contain, and what happens if it does not comply?

Quick Reference

It must be in writing, make clear that it is made under Part 36, specify a relevant period of not less than 21 days where it is made not less than 21 days before trial, state whether it relates to the whole of the claim or to part of it or to an issue in it, and state whether it takes into account any counterclaim. If it does not comply it is just an ordinary offer and the Part 36 costs consequences fall away, which is the clearest example of a document that reads well and does nothing.

#204 · Legal Drafting

What are the rules for drafting a witness statement in Dispute Resolution?

Quick Reference

It must be in the witness's own words and in the first person, chronological, and confined to what the witness can say of their own knowledge, identifying the source of anything said on information and belief. It ends with a statement of truth.

#205 · Legal Drafting

What must a defence statement contain, and what limit does the client's instruction place on you?

Quick Reference

It sets out the nature of the defence including any particular defences relied on, the matters of fact on which the defendant takes issue with the prosecution and why, particulars of the matters of fact on which the defendant intends to rely for the defence, any point of law to be taken including admissibility and abuse of process, and details of any alibi witness. It must be drafted on the client's instructions, and you must not assert a positive case the client has not given you.

#206 · Legal Drafting

You are asked to draft a special condition in a Property Practice contract. How must it sit with the Standard Conditions of Sale?

Quick Reference

The Standard Conditions will be supplied where relevant, and the special condition must be drafted to work with them, whether it varies, excludes or supplements a standard condition. Say expressly which condition you are varying rather than leaving the reader to infer it.

#207 · Legal Drafting

What must a legacy in a will clause contain, and what must a deed of variation satisfy?

Quick Reference

A legacy must identify the beneficiary and the subject matter with certainty and should say what happens if the beneficiary predeceases the testator. A variation must be in writing, signed by the beneficiaries giving up their entitlement, made within two years of death, and not made for any consideration in money or money's worth; where the tax reading back is intended it must contain a statement that section 142 of the Inheritance Tax Act 1984 applies, and a section 62(6) TCGA 1992 statement for capital gains.

#208 · Legal Drafting

What must a board minute and a shareholders' resolution each record?

Quick Reference

A board minute needs the company, the date, those present, confirmation of quorum, any declarations of interest, the business and the resolutions passed. A shareholders' resolution must be correctly labelled ordinary or special, record the required majority, and follow the correct procedure for a meeting or a written resolution.

#209 · Legal Drafting

What are the three recurring failures when amending from a supplied precedent?

Quick Reference

Leaving in provisions that do not fit the transaction, such as guarantor clauses where there is no guarantor, since every clause you leave in asserts the parties agreed it. Failing to change every cross reference, because deleting a clause silently breaks the numbers pointing at it. And producing a clause that is legally ineffective because the precedent reflects law or practice that does not apply, or because the amendment hollowed it out.

#210 · Legal Drafting

A partner asks you to draft a board minute recording a declaration of interest that was never made. What do you do, and how do you handle the ethics point generally in drafting?

Quick Reference

Do not draft it, because recording something you know is untrue engages the duty not to mislead. Resolve the point in the way the instructions allow: if a covering note or email to the partner is permitted, say what the problem is, which SRA Principle or Code duty it engages and what you propose instead; if not, draft the compliant clause rather than the improper one. Silence scores nothing, and that criterion is worth as much as legal correctness.

#211 · Criminal Law and Practice

In SQE2, which oral station and how many written stations does Criminal Law and Practice carry, and what is its underlying black letter law?

Quick Reference

Criminal Law and Practice carries the Advocacy station on oral day 2 and two of the four written exercises on written day 1. The underlying black letter law is Criminal Liability. The practice area expressly includes advising clients at the police station.

#212 · Criminal Law and Practice

What four settings does a criminal SQE2 station almost always sit in?

Quick Reference

The police station, the first hearing in the magistrates' court, a bail application, or a sentencing hearing. The range of scenarios is deliberately narrow, so prepare those four thoroughly rather than reading widely.

#213 · Criminal Law and Practice

Who is the custody officer and what does that officer decide when a suspect arrives?

Quick Reference

The custody officer is a sergeant or above who must not be involved in the investigation. That officer decides whether there is sufficient evidence to charge and, if not, whether detention without charge is necessary to secure or preserve evidence or to obtain evidence by questioning.

#214 · Criminal Law and Practice

What is the custody record and why should the solicitor read it first?

Quick Reference

The custody record is opened when detention is authorised and logs every event, request and refusal during the detention. Reading it first tells you what has happened, what your client has asked for and what has been refused, which is the factual foundation for everything you then do.

#215 · Criminal Law and Practice

What three continuing rights must the custody officer tell the suspect about?

Quick Reference

The right to have someone informed of the arrest, the right to consult the Codes of Practice, and the right to consult a solicitor privately and free of charge at any time. They are continuing rights, so they can be exercised at any point during detention, not only at the outset.

#216 · Criminal Law and Practice

Is legal advice at the police station free, and is it means tested?

Quick Reference

It is free and it is not means tested. It is also independent of the police. Say this plainly to a client who is worried about cost or who assumes the duty solicitor works with the police.

#217 · Criminal Law and Practice

When does the detention clock start and what is the basic period of detention without charge?

Quick Reference

The clock runs from the relevant time, which is normally arrival at the first police station. The basic period is 24 hours.

#218 · Criminal Law and Practice

How can detention without charge be extended beyond 24 hours, and what is the outer limit?

Quick Reference

A superintendent may extend detention to 36 hours where the offence is indictable and the conditions are met. Beyond 36 hours only a magistrates' court can authorise further detention, by warrant, to an outer limit of 96 hours.

#219 · Criminal Law and Practice

Who reviews detention, and at what intervals?

Quick Reference

An inspector unconnected with the investigation must review detention. The first review is within six hours of authorisation and later reviews follow at intervals of no more than nine hours.

#220 · Criminal Law and Practice

Which detainees must have an appropriate adult?

Quick Reference

Detainees under 18, and adults who are vulnerable because of a mental health condition or mental disorder. A vulnerable suspect must not be interviewed without an appropriate adult save in genuinely urgent situations.

#221 · Criminal Law and Practice

What is the role of the appropriate adult, and is what the detainee says to them privileged?

Quick Reference

The appropriate adult supports the detainee and sees that the interview is conducted properly and fairly. They give no legal advice and they are not covered by privilege, so nothing said in front of them is protected in the way advice from the solicitor is.

#222 · Criminal Law and Practice

Your client at the police station cannot follow simple questions and appears unwell. Why does this earn marks?

Quick Reference

Raising the appropriate adult and fitness for interview in that situation is a marked point, not a courtesy. A client who is intoxicated, very young, plainly unwell or unable to follow simple questions should not be interviewed until those issues are addressed.

#223 · Criminal Law and Practice

Are the police obliged to hand over their evidence before interview?

Quick Reference

There is no statutory duty to hand over their evidence at that stage. The Codes require them to give sufficient information for the suspect to understand the nature of the offence and why he is suspected of it, so you ask the investigating officer what the case is.

#224 · Criminal Law and Practice

Why does thin or drip fed police disclosure support advising no comment?

Quick Reference

If disclosure is thin, withheld or drip fed you cannot properly advise on what facts the client may later wish to rely on, because you do not know what the allegation is. That is a proper basis for advising no comment. State the reason on tape at the start of the interview so a court can later see that silence was the product of legal advice given for a stated reason.

#225 · Criminal Law and Practice

How does full disclosure of a strong case change your advice at the police station?

Quick Reference

Where disclosure is full and the case strong, an early account or an early guilty plea may serve the client best. Disclosure drives advice, so the quality of what the police have told you is the first thing you assess.

#226 · Criminal Law and Practice

Set out the caution and what each of its three parts warns the suspect.

Quick Reference

The caution warns the suspect that he does not have to say anything, that it may harm his defence if he does not mention when questioned something which he later relies on in court, and that anything he does say may be given in evidence. The middle limb is the source of the adverse inference from silence.

#227 · Criminal Law and Practice

When may a court draw an adverse inference from a failure to mention a fact in interview?

Quick Reference

Where the defendant failed to mention, when questioned under caution, a fact later relied on in his defence which he could reasonably have been expected to mention at the time. The inference bites on the mismatch between the interview and the defence run at trial.

#228 · Criminal Law and Practice

What two failures to account can found an adverse inference, and what must precede them?

Quick Reference

A failure to account for objects, substances or marks on the suspect or in his possession, and a failure to account for his presence at a place. Both require a special warning in ordinary language first.

#229 · Criminal Law and Practice

Can an inference be drawn where the suspect was denied access to a solicitor, and can a conviction rest on an inference alone?

Quick Reference

No inference may be drawn if the suspect was not allowed the opportunity to consult a solicitor before questioning. Nobody may be convicted solely on an inference.

#230 · Criminal Law and Practice

Does the fact that the client was silent on legal advice defeat an adverse inference?

Quick Reference

Not by itself. What may defeat it is the reason for the advice. That is why the reason must be sound and must be recorded at the start of the interview.

#231 · Criminal Law and Practice

A further adverse inference provision applies at trial. What is it?

Quick Reference

An inference may be drawn from a failure to give evidence at trial. It sits alongside the interview based inferences, and the same rule applies that nobody may be convicted solely on an inference.

#232 · Criminal Law and Practice

What are the three realistic options for a suspect facing interview?

Quick Reference

Answering questions, handing in a prepared statement and then answering no further questions, or making no comment. Each is chosen for a reason you can articulate, and the reason is what a marker is looking for.

#233 · Criminal Law and Practice

When does answering questions in interview suit the client?

Quick Reference

Where the client has a clear, truthful, exculpatory account which he can give under pressure, where disclosure is sufficient to know what that account must meet, and where there is a realistic chance of no charge.

#234 · Criminal Law and Practice

What is a prepared statement and what does it achieve?

Quick Reference

You draft it, the client adopts it, it is handed in, usually at the start of interview, and he answers no further questions. It puts the facts relied on on the record, protecting against an adverse inference, while sparing him cross examination in an interview room.

#235 · Criminal Law and Practice

What is the cost of using a prepared statement?

Quick Reference

Commitment. The account is fixed early, before real disclosure, and any later departure from it is material for cross examination. Advise the client of that before he adopts it.

#236 · Criminal Law and Practice

When does no comment suit the client, and why is it not a default?

Quick Reference

It suits inadequate disclosure, an unfit or vulnerable client, a client who cannot yet give a coherent account, or police who plainly have insufficient evidence and are fishing. It is not a default because you must be able to articulate the reason, and you must tell the client honestly that a court may later be invited to hold the silence against him.

#237 · Criminal Law and Practice

What is the starting presumption on bail?

Quick Reference

A defendant is entitled to bail unless an exception applies. Structure every bail argument from that presumption, so the burden is on the prosecution to bring the case within an exception.

#238 · Criminal Law and Practice

What are the main bail exceptions for an imprisonable either way or indictable offence?

Quick Reference

Substantial grounds for believing that if released the defendant would fail to surrender, would commit further offences on bail, or would interfere with witnesses or otherwise obstruct the course of justice. Others include detention for his own protection and the court having insufficient information.

#239 · Criminal Law and Practice

What extra protection exists for an adult with no previous convictions?

Quick Reference

FRONT: What extra protection exists for an adult who has not been convicted in the present proceedings? BACK: Where an adult has not been convicted of an offence in those proceedings and there is no real prospect that he will receive a custodial sentence in them, there are additional restrictions on refusing him bail. Note that previous convictions from earlier, unrelated matters do not take the point away, so take it expressly wherever custody is not a realistic outcome, because it narrows what the prosecution can rely on.

#240 · Criminal Law and Practice

What statutory factors are used to establish a bail ground, and what is the trap?

Quick Reference

The nature and seriousness of the offence and likely disposal, the defendant's character, antecedents, associations and community ties, his record of compliance with bail, and the strength of the evidence. The trap is treating a factor as a ground. Factors feed a ground; they are not grounds themselves.

#241 · Criminal Law and Practice

List the bail conditions available and the test each must satisfy.

Quick Reference

Residence, a curfew with or without electronic monitoring, reporting to a police station, no direct or indirect contact with named witnesses, exclusion from an area, surrender of a passport, a security or a surety. Every condition must be necessary for a statutory purpose, and the persuasive advocate offers a package answering each objection raised.

#242 · Criminal Law and Practice

How do you structure a bail application in the Advocacy station?

Quick Reference

Introduce yourself, your client and the application. State the charge and the stage shortly. Take the objections in the order raised and answer each, deploying the statutory factors and then the condition that neutralises the risk. Close by inviting the court to grant bail on the conditions offered, and be ready for questions from the bench, because engaging with the judge is itself an assessed skill.

#243 · Criminal Law and Practice

What can be done after the magistrates refuse bail?

Quick Reference

Two full applications are normally available, and any further application requires a change of circumstances. A magistrates' refusal can be appealed to the Crown Court.

#244 · Criminal Law and Practice

Where are summary only and indictable only offences tried, and which offences need allocation?

Quick Reference

Summary only offences are tried in the magistrates' court. Indictable only offences are sent to the Crown Court at the first hearing with no consideration of venue. Only either way offences require allocation.

#245 · Criminal Law and Practice

What happens at plea before venue?

Quick Reference

The charge is put and the defendant indicates a plea. On a guilty indication the magistrates sentence, or commit to the Crown Court for sentence if their powers are insufficient. On a not guilty indication, or none, the court moves to allocation.

#246 · Criminal Law and Practice

What does the court do at the allocation stage of an either way offence?

Quick Reference

It hears the prosecution, which informs the court of previous convictions, and the defence, applies the Allocation Guideline, and decides whether its sentencing powers are adequate. If it declines jurisdiction the case is sent up; if it accepts jurisdiction the defendant is told he may consent to summary trial or elect trial by jury.

#247 · Criminal Law and Practice

Advise on electing Crown Court trial: what points go each way, and who decides?

Quick Reference

For the Crown Court: trial by jury, higher acquittal rates on some offence types, a judge ruling on admissibility separately from the tribunal of fact, and fuller disclosure. Against: delay, cost, stress, and materially greater sentencing power. Give the advice, then let the client decide, because election is his choice, not yours.

#248 · Criminal Law and Practice

What is the magistrates' maximum sentence for a single either way offence?

Quick Reference

Do not memorise a figure. That limit has been altered more than once in recent years, so check the limit current at your sitting. The principle to carry into the exam is that the magistrates' powers are capped and that a defendant tried summarily may still be committed to the Crown Court for sentence.

#249 · Criminal Law and Practice

What happens at the magistrates' first hearing on a not guilty plea, and what is the overriding objective?

Quick Reference

The prosecution provides initial details of its case, the defendant enters his plea, and the court completes a case management form identifying the real issues, the witnesses genuinely required, and the directions and time limits. The overriding objective is that criminal cases be dealt with justly, and the parties must actively assist the court in managing the case.

#250 · Criminal Law and Practice

What is the plea and trial preparation hearing?

Quick Reference

The first Crown Court hearing before a judge, ordinarily within a few weeks of sending. The defendant is arraigned, directions are given and a trial date is fixed.

#251 · Criminal Law and Practice

State the prosecutor's statutory disclosure duty.

Quick Reference

The prosecutor must disclose material which might reasonably be capable of undermining the prosecution case or assisting the defence. The duty is continuing, so it does not end when initial disclosure is served.

#252 · Criminal Law and Practice

What is a defence statement, where is it compulsory, and what does it trigger?

Quick Reference

It sets out the nature of the defence, the matters of fact in issue and the reasons for them. It is compulsory in the Crown Court and voluntary in the magistrates' court. It triggers the prosecutor's review of unused material and any application for specific disclosure.

#253 · Criminal Law and Practice

State the elements of theft, and explain how a defendant can steal his own goods.

Quick Reference

Theft is the dishonest appropriation of property belonging to another with the intention permanently to deprive. Appropriation is the assumption of any of the rights of an owner and can occur even with the owner's consent. Property belonging to another covers property in which another has any proprietary right or interest, which is how a defendant can steal goods he owns.

#254 · Criminal Law and Practice

How is dishonesty established in theft?

Quick Reference

A defendant is not dishonest if he believes he has a legal right to the property, that the owner would have consented had he known, or that the owner cannot be discovered by taking reasonable steps. Beyond those, first find his actual knowledge or belief as to the facts, then ask whether his conduct was dishonest by the standards of ordinary decent people. There is no longer any requirement that he realised he was dishonest by those standards.

#255 · Criminal Law and Practice

State the elements of robbery, and what happens if the theft fails.

Quick Reference

Robbery is theft plus force. The prosecution must prove a complete theft, and that immediately before or at the time of it, and in order to steal, the defendant used force on a person or put or sought to put a person in fear of being then and there subjected to force. If the theft fails, the offence is not robbery.

#256 · Criminal Law and Practice

What are the two forms of burglary?

Quick Reference

First, entering a building or part of a building as a trespasser with intent to steal, inflict grievous bodily harm or cause criminal damage, the intent existing at entry. Second, having entered as a trespasser, stealing or attempting to steal, or inflicting or attempting to inflict grievous bodily harm.

#257 · Criminal Law and Practice

State the elements of fraud by false representation and when the offence is complete.

Quick Reference

Dishonestly making a false representation, knowing it is or might be untrue or misleading, with intent to make a gain or cause a loss or expose another to a risk of loss. It is complete when the representation is made: nobody need be deceived and no gain need result. A representation may be express or implied, and may be made to a machine.

#258 · Criminal Law and Practice

What must be proved for assault occasioning actual bodily harm?

Quick Reference

An assault or battery causing harm that is more than trifling. The mental element is only that of the assault or battery itself, so no intention or foresight of the harm is needed.

#259 · Criminal Law and Practice

Distinguish the two grievous bodily harm offences, and define a wound.

Quick Reference

Unlawfully and maliciously wounding or inflicting grievous bodily harm requires intention or recklessness as to some harm, not serious harm. The more serious offence is wounding or causing grievous bodily harm with intent to do grievous bodily harm or to resist or prevent lawful arrest, where nothing short of that intent will do. A wound is a break in both layers of the skin.

#260 · Criminal Law and Practice

State the elements of criminal damage and its two statutory lawful excuses.

Quick Reference

Destroying or damaging property belonging to another, intending to do so or being reckless as to whether it is done, without lawful excuse. The statutory lawful excuses cover a belief that the owner would have consented, and acting to protect other property, both judged on the facts as the defendant honestly believed them to be.

#261 · Criminal Law and Practice

What is aggravated criminal damage, and where must the danger come from?

Quick Reference

Damaging property intending or being reckless as to whether life is thereby endangered. It is far more serious than simple criminal damage, and the danger must arise from the damage itself.

#262 · Criminal Law and Practice

State the test for self defence.

Quick Reference

A defendant may use force that is reasonable in the circumstances as he honestly believed them to be, to defend himself or another, to protect property or to prevent crime. The honesty of the belief is subjective; the reasonableness of the response is objective on those believed facts, allowing for the fact that a person acting in the heat of the moment cannot weigh matters to a nicety.

#263 · Criminal Law and Practice

What must be shown for duress by threats, and how is the defence lost?

Quick Reference

Threats of death or serious injury, a reasonable belief in them, and a response the sober person of reasonable firmness sharing the defendant's characteristics would have made. It is lost by voluntary association with those known to be capable of coercion, and it is no defence to murder.

#264 · Criminal Law and Practice

What is the effect of voluntary intoxication, and when is consent a defence?

Quick Reference

Voluntary intoxication may negate the intent required for a specific intent offence but not the recklessness sufficient for a basic intent offence. Consent is a defence to assault and battery but not ordinarily to the deliberate infliction of actual bodily harm or worse, subject to recognised exceptions such as properly conducted sport, surgery and tattooing.

#265 · Criminal Law and Practice

What steps does a Sentencing Council guideline take the court through, and how binding is it?

Quick Reference

Assess culpability and harm to reach a category, take the category starting point and range, adjust for aggravating and mitigating factors, apply the reduction for a guilty plea, then consider totality, ancillary orders such as compensation, and credit for time on remand. The court must follow the relevant guideline unless satisfied that it would be contrary to the interests of justice to do so.

#266 · Criminal Law and Practice

Give the common aggravating and mitigating factors at sentence.

Quick Reference

Aggravating: previous convictions, especially recent and similar, offending on bail, hostility based on a protected characteristic, offending in a group, the vulnerability of the victim, and being under the influence. Mitigating: good character, genuine remorse, a subordinate role, mental disorder or learning disability, sole or primary caring responsibilities, and steps taken to address offending.

#267 · Criminal Law and Practice

How does credit for a guilty plea work, and how does it differ from remorse?

Quick Reference

Credit is separate from remorse. The maximum reduction is available for an indication at the first stage and slides downwards thereafter. Remorse is a mitigating factor applied when the court adjusts within the category range; plea credit is a discount applied afterwards.

#268 · Criminal Law and Practice

State the custody threshold and what the court must then consider.

Quick Reference

A custodial sentence may be passed only where the offence is so serious that neither a fine nor a community sentence can be justified. Even then the court must consider whether the sentence can be suspended.

#269 · Criminal Law and Practice

What are the three parts of a plea in mitigation?

Quick Reference

First the offence: accept what must be accepted and place the offending at the lowest defensible point in the guideline, using the role, the absence of planning, the limited harm and the absence of weapons. Second the offender: humanise the client with the facts a sentencer acts on, such as work, dependants, health and steps taken since the offence. Third the sentence: say what you want and how the court can properly get there. Never sit down without naming the outcome you seek.

#270 · Criminal Law and Practice

Your client admits guilt but insists on pleading not guilty. What may you do and what may you not do?

Quick Reference

You may continue to act, put the prosecution to proof, test its witnesses and submit that the evidence does not reach the criminal standard. You may not advance a positive case inconsistent with the admission, so you cannot suggest he was elsewhere, call him to deny it, or suggest someone else did it. Explain that limit, and if he insists on an approach you cannot properly take, cease to act.

#271 · Criminal Law and Practice

Your client proposes to give false evidence, or to call a witness he tells you will lie. What must you do?

Quick Reference

He cannot be assisted. You must not mislead the court or allow it to be misled, so if he will not be dissuaded you must withdraw. Withdraw without revealing the reason, because confidentiality survives the end of the retainer.

#272 · Criminal Law and Practice

When do co-defendants create a conflict, and how does confidentiality sit against the duty to the court?

Quick Reference

You cannot act for two clients where there is a conflict of interest or a significant risk of one, and the risk crystallises the moment one client's account shifts blame onto the other or one is minded to give evidence against him; if you hold confidential information from both you will normally have to stop acting for both. Where confidentiality to one client conflicts with the duty to make another aware of material information, confidentiality prevails. Above both sits the duty to the court: do not mislead it, do not knowingly put forward false information, and correct any misleading impression you have created.

#273 · Dispute Resolution

What is distinctive about Dispute Resolution's place in the SQE2 assessment pattern?

Quick Reference

It is one of only two practice areas carrying an advocacy station, the other being Criminal Litigation, and it carries two written stations as well. The advocacy station is 45 minutes of preparation and 15 minutes before a solicitor playing a judge, almost always on an interim application. The underlying law is contract and tort.

#274 · Dispute Resolution

What five questions must be answered before anything is drafted on a new claim?

Quick Reference

The cause of action, limitation, the parties, the remedy, and the merits. Working through all five in order is what turns a set of facts into advice a client can act on.

#275 • Dispute Resolution

Why must the cause of action be named precisely?

Quick Reference

Breach of an express term differs from breach of a term implied by the Sale of Goods Act 1979 or the Supply of Goods and Services Act 1982, and negligence is different again. Where the client has both a contractual and a tortious route, say which is better, because the damages measure and the limitation period may differ.

#276 • Dispute Resolution

What is the ordinary limitation period for contract and tort claims, and when does time start in each?

Quick Reference

Ordinarily six years from accrual under the Limitation Act 1980. In contract time runs from the breach, not from discovery of the loss. In tort it runs from the damage, which is why the date can be later.

#277 · Dispute Resolution

What is the limitation period for personal injury?

Quick Reference

Three years from the injury or from the date of knowledge, whichever is later, with a judicial discretion to extend. Identify which trigger applies on your facts before advising that a claim is time barred.

#278 · Dispute Resolution

How do you correctly identify a defendant as a legal person?

Quick Reference

A sole trader is sued in their own name, a partnership in the firm name, and a company by its registered name and number. Getting this wrong at issue is a problem that limitation may make impossible to cure.

#279 · Dispute Resolution

What remedies should be considered beyond damages?

Quick Reference

Damages are the default, but consider specific performance, an injunction, a declaration, rescission and recovery of a debt. Choosing the remedy shapes the claim form and the particulars.

#280 · Dispute Resolution

What does a candid view on the merits have to cover?

Quick Reference

The evidential gaps, the defendant's likely answer, the litigation risk, and how that compares with the likely recovery and the irrecoverable costs. The client wants to know whether to fight, so give a view rather than a list of possibilities.

#281 • Dispute Resolution

What governs pre action conduct, and what must a letter of claim contain?

Quick Reference

Every claim is governed either by an approved pre action protocol or by the Practice Direction on Pre Action Conduct and Protocols. The letter of claim sets out the facts, the basis of the claim, what is claimed and how any sum is calculated, with the key documents.

#282 • Dispute Resolution

What must a defendant's pre action response do?

Quick Reference

Respond within the protocol period, admitting or denying each allegation with reasons, and disclosing the documents it relies on. The parties then consider settling and narrowing the issues.

#283 · Dispute Resolution

What are the consequences of failing to comply with pre action conduct requirements?

Quick Reference

Non compliance rarely bars issuing, but the court takes it into account on costs. A claimant who issues without a proper letter of claim may be deprived of costs or interest, or ordered to pay costs; a defendant who ignores one risks indemnity costs and enhanced interest.

#284 · Dispute Resolution

Can the court order parties into a non court dispute resolution process?

Quick Reference

Yes. Following the Court of Appeal's decision in *Churchill v Merthyr Tydfil County Borough Council* and the Civil Procedure Rules amendments made in October 2024, the court can order parties to engage in a non court dispute resolution process, provided the order does not impair the essence of the right to a fair trial and is proportionate.

#285 · Dispute Resolution

What are the features of mediation, and what are the alternatives to it?

Quick Reference

Mediation is voluntary in outcome, confidential and conducted without prejudice, and the mediator has no power to impose a result. The alternatives are early neutral evaluation, expert determination, arbitration, adjudication and ombudsman schemes.

#286 · Dispute Resolution

What factors decide whether a refusal to engage in ADR was unreasonable?

Quick Reference

The nature of the dispute, the merits, whether other settlement methods were tried, whether ADR costs would have been disproportionate, whether delay would have prejudiced the trial, and whether the process had a reasonable prospect of success. A winning party can be deprived of some or all of its costs if it unreasonably refused to engage.

#287 • Dispute Resolution

Your client wants to ignore the other side's mediation invitation. What do you advise?

Quick Reference

Silence in the face of an invitation is generally unreasonable in itself, and would put the client's costs at risk even if it wins. Answer every ADR invitation in writing with reasons, and keep that correspondence open so it can be shown to the judge on costs.

#288 • Dispute Resolution

When do proceedings start, and what decides whether to issue in the County Court or the High Court?

Quick Reference

Proceedings start when the court issues a claim form. Jurisdiction turns on value and complexity: money claims must generally start in the County Court unless the claimant expects to recover more than the relevant threshold, and a claim should only start in the High Court if value, complexity, importance or public interest justifies it.

#289 · Dispute Resolution

What is the money threshold above which a claim may be started in the High Court?

Quick Reference

Do not state a figure from memory. The chapter deliberately withholds it, and the threshold is a lower figure for personal injury than for other money claims. Check the current thresholds at your sitting; the examinable principle is that value plus complexity, importance or public interest is what justifies the High Court.

#290 · Dispute Resolution

How is the High Court divided?

Quick Reference

Into three divisions: the King's Bench Division, the Chancery Division and the Family Division. The specialist business and property lists across the King's Bench and Chancery Divisions are grouped as the Business and Property Courts, which is not itself a division. Identify the right division and list before advising a client that a claim will be issued in the High Court.

#291 • Dispute Resolution

What are the time limits for serving a claim form and particulars of claim?

Quick Reference

A claim form must be served within four months of issue, or six months out of the jurisdiction. Particulars of claim are served with the claim form or within fourteen days after it, and in any event within the period for serving the claim form.

#292 • Dispute Resolution

What are the permitted methods of service, and what is the trap on timing?

Quick Reference

Personal service, first class post or document exchange to the last known residence or a company's registered office, and electronic service where the recipient has confirmed in writing that it will accept it. The trap is deemed service: the deemed date follows from the method, so calculate it rather than assuming actual receipt.

#293 · Dispute Resolution

How long does a defendant have to respond, and how is that period extended?

Quick Reference

Fourteen days from service of the particulars of claim to file a defence or an acknowledgment of service. Filing an acknowledgment extends the defence deadline to twenty eight days from service of the particulars.

#294 · Dispute Resolution

How is jurisdiction disputed?

Quick Reference

By filing an acknowledgment of service and then applying within fourteen days of filing it. Filing a defence instead of taking that route risks submitting to the jurisdiction.

#295 · Dispute Resolution

What four responses are open to a defendant, and what is special about a counterclaim?

Quick Reference

Admit the whole claim, admit part, defend, or defend and counterclaim. A counterclaim is a claim in its own right, so it needs its own statement of truth and its own fee.

#296 · Dispute Resolution

When is default judgment available and how is it entered?

Quick Reference

Where the defendant files nothing in time. It is entered administratively for a specified sum, and after a damages hearing for an unspecified sum.

#297 · Dispute Resolution

On what grounds can default judgment be set aside?

Quick Reference

It must be set aside if it was wrongly entered. It may be set aside where the defendant has a real prospect of successfully defending the claim or there is some other good reason, with promptness weighing heavily in the court's decision.

#298 · Dispute Resolution

What documents are statements of case, and what is their function?

Quick Reference

The claim form, particulars of claim, defence, any reply, any counterclaim and defence to it, and further information about them. Their function is to define the issues, so each party knows the case it must meet and the court knows what it must decide. They contain a concise statement of the facts relied on, not evidence and not argument.

#299 · Dispute Resolution

What must a defence do with each allegation, and what happens if an allegation is ignored?

Quick Reference

It must state which allegations are admitted, which are denied with reasons and the defendant's own version, and which are not admitted for want of knowledge. An allegation not dealt with may be taken as admitted.

#300 · Dispute Resolution

What is a statement of truth and what is the risk in signing one?

Quick Reference

Every statement of case needs a statement of truth verifying that the facts stated are believed to be true. Signing one without an honest belief in its truth exposes the signatory to contempt proceedings.

#301 · Dispute Resolution

What happens after defences are filed, and how many allocation tracks are there?

Quick Reference

The court provisionally allocates the claim and sends out directions questionnaires. There are four tracks: the small claims track, the fast track, the intermediate track and the multi track.

#302 · Dispute Resolution

What are the features of the small claims track?

Quick Reference

It takes claims of modest value, with a lower ceiling for the damages element of personal injury claims. Procedure is simplified and standard directions are given. Costs recovery is very restricted, broadly to court fees, fixed commencement costs and limited witness expenses.

#303 · Dispute Resolution

What are the features of the fast track?

Quick Reference

It takes claims above the small claims limit up to the fast track ceiling, where trial will last no more than one day and expert evidence is limited to one expert per party in no more than two fields. Fixed recoverable costs apply, set by the complexity band assigned to the claim and by the stage reached.

#304 · Dispute Resolution

What are the monetary thresholds separating the four allocation tracks?

Quick Reference

Do not state figures from memory. The chapter deliberately declines to give them because they move, so check the thresholds current at your sitting. What is examinable is the shape: value, trial length, number of parties and permitted expert evidence together decide the track, and each track carries its own costs regime.

#305 · Dispute Resolution

What are the features of the intermediate track?

Quick Reference

Introduced in October 2023, it sits between the fast track and the multi track. It takes claims above the fast track ceiling up to the intermediate ceiling where trial will last no more than three days, there are no more than three parties and oral expert evidence is limited to two experts per party. It runs on fixed recoverable costs by complexity band.

#306 · Dispute Resolution

What are the features of the multi track?

Quick Reference

It takes everything not falling into the other three tracks. Directions are tailored, often at a case management conference. Costs are assessed rather than fixed, and costs budgeting normally applies.

#307 · Dispute Resolution

State the test for summary judgment.

Quick Reference

It is available to either party where the respondent has no real prospect of succeeding on the claim, defence or issue, and there is no other compelling reason for a trial. Real means more than fanciful.

#308 · Dispute Resolution

When will the court refuse summary judgment, and how should the application be argued?

Quick Reference

The court holds no mini trial and will refuse where the case turns on disputed oral evidence or where documents are reasonably expected to become available. Argue it by isolating the issue that decides the case and showing the respondent's answer to it is not credible on the material before the court.

#309 · Dispute Resolution

On what grounds may a statement of case be struck out?

Quick Reference

Where it discloses no reasonable grounds for bringing or defending the claim, where it is an abuse of process or likely to obstruct the just disposal of proceedings, or where a rule, practice direction or order has not been complied with.

#310 · Dispute Resolution

How do you keep strike out and summary judgment apart?

Quick Reference

Strike out looks at the pleading as it stands. Summary judgment looks at the evidence. If the pleading would fail even if every fact in it were true, strike out is the application; if the pleading is adequate but the evidence cannot support it, summary judgment is.

#311 · Dispute Resolution

When may the court order an interim payment, and how much may it order?

Quick Reference

The court must be satisfied that the defendant has admitted liability, or that judgment has been obtained with damages to be assessed, or that the claimant would obtain judgment for a substantial sum. Any order must be for a reasonable proportion of the likely final judgment.

#312 · Dispute Resolution

Set out the American Cyanamid approach to an interim injunction.

Quick Reference

Is there a serious issue to be tried? Would damages adequately compensate the applicant if the injunction is refused and it later succeeds? Would the cross undertaking in damages adequately protect the respondent if it is granted and the applicant later fails? If those do not decide it, where does the balance of convenience lie, and if that is even, preserve the status quo.

#313 · Dispute Resolution

What two duties attach to an applicant for an interim injunction, and when does the second apply?

Quick Reference

A cross undertaking in damages is required as the ordinary price of the injunction, though the court retains a discretion to dispense with it, most commonly where a public body seeks the order to enforce the law. On a without notice application the applicant also owes a duty of full and frank disclosure, including of the points against it.

#314 · Dispute Resolution

When does relief from sanctions arise, and what are the three Denton stages?

Quick Reference

It arises where a party has failed to comply with a rule, practice direction or order carrying a sanction. Assess the seriousness and significance of the breach; consider why the default occurred; then evaluate all the circumstances so as to deal justly with the application, giving particular weight to the need for litigation to be conducted efficiently and at proportionate cost and to enforce compliance. Apply promptly, be candid about the cause, and show what has already been done to put it right.

#315 • Dispute Resolution

What is the running order for any interim application before the judge?

Quick Reference

Tell the judge what order you seek, then the rule, then the test, then the facts against each limb of the test, then costs. Deal with the point against you before the judge finds it.

#316 • Dispute Resolution

What is disclosure, and what does standard disclosure require?

Quick Reference

Disclosure is the statement that a document exists or has existed. Standard disclosure requires a party to disclose the documents it relies on, documents adversely affecting its own or another party's case or supporting another party's case, and documents required by a practice direction, after a reasonable and proportionate search.

#317 • Dispute Resolution

Distinguish legal advice privilege from litigation privilege, and say who can waive privilege.

Quick Reference

Legal advice privilege covers confidential communications between lawyer and client for the purpose of legal advice. Litigation privilege covers communications with third parties where litigation was in reasonable contemplation and the dominant purpose was that litigation. Privilege belongs to the client, and only the client can waive it.

#318 • Dispute Resolution

How should without prejudice correspondence be marked, and what must you never do with it?

Quick Reference

Without prejudice correspondence is privileged and cannot be put before the court on the substantive issues. Mark it "without prejudice save as to costs" where you want to rely on it on costs, which is the basis on which Part 36 operates. Never dress an open threat as a without prejudice offer.

#319 · Dispute Resolution

What are the requirements for a witness statement, and what happens if one is served late?

Quick Reference

Statements stand as evidence in chief. They must be in the witness's own words, confined to facts within the witness's own knowledge, and must identify anything said from information or belief together with its source. Exchange is usually simultaneous, and a statement served late cannot be relied on without relief from sanctions.

#320 · Dispute Resolution

What controls expert evidence, and to whom does the expert owe a duty?

Quick Reference

Expert evidence is restricted to what is reasonably required to resolve the proceedings and needs the court's permission. The expert's duty to the court overrides any duty to the instructing party. Reports must state the substance of instructions, the range of opinion, and carry a statement of truth.

#321 · Dispute Resolution

What must a Part 36 offer contain to be a valid Part 36 offer?

Quick Reference

It must state that it is made under Part 36, specify a relevant period of not less than 21 days, and say whether it relates to the whole claim or part and whether any counterclaim is taken into account. Miss any of those and the offer will not attract the Part 36 costs consequences.

#322 · Dispute Resolution

On what basis is a Part 36 offer made, and when does the trial judge see it?

Quick Reference

It is made without prejudice except as to costs. It is not put before the trial judge until everything except costs has been decided.

#323 · Dispute Resolution

What are the costs consequences for a claimant who accepts a defendant's Part 36 offer, in time and late?

Quick Reference

A claimant accepting within the relevant period recovers its costs to the date of acceptance. A claimant accepting late normally pays the defendant's costs from the end of the relevant period to the date of acceptance; a claimant who goes to trial and fails to obtain a judgment more advantageous than the offer normally pays the defendant's costs from the end of the relevant period, with interest on those costs.

#324 · Dispute Resolution

What happens where a defendant fails to beat a claimant's own Part 36 offer?

Quick Reference

The court will normally order interest on the sum awarded at a rate not exceeding ten per cent above base rate, indemnity costs from the end of the relevant period, interest on those costs at the same enhanced rate, and an additional amount calculated as a percentage of the sum awarded, subject to a cap. Those orders follow unless the court considers it unjust to make them.

#325 · Dispute Resolution

How do you advise a client on the level at which to pitch a Part 36 offer?

Quick Reference

A well pitched claimant's offer transfers risk to the defendant. Advise on the cost of continuing, the range of likely outcomes, and the offer that maximises pressure while remaining one the client would genuinely accept, because an offer the client would refuse is no protection at all.

#326 · Dispute Resolution

What is the general rule on costs, and what tempers it?

Quick Reference

Costs follow the event, so the unsuccessful party pays the successful party's costs. The court retains a discretion and will weigh conduct, exaggeration, partial success and Part 36.

#327 · Dispute Resolution

Distinguish the standard basis from the indemnity basis of costs assessment.

Quick Reference

Standard basis assessment allows only costs that are proportionate and reasonably incurred, and doubt is resolved in favour of the paying party. Indemnity basis assessment drops the proportionality test and resolves doubt in favour of the receiving party, so it is materially more generous.

#328 · Dispute Resolution

How do costs budgets work in the multi track?

Quick Reference

In most multi track cases the parties file and exchange costs budgets. The budget as agreed or approved sets the figure the court will normally allow on assessment, so an unapproved overspend is usually irrecoverable. Fast track and intermediate track claims are instead governed by fixed recoverable costs.

#329 · Dispute Resolution

What are the routes to enforcing a money judgment?

Quick Reference

Taking control of goods by a County Court warrant or a High Court writ, a third party debt order attaching a bank account or a debt owed to the debtor, a charging order over land or securities followed by an order for sale, an attachment of earnings order, and winding up a company on an undisputed debt. Enforcement is a separate exercise from obtaining judgment.

#330 · Dispute Resolution

What is needed to form a contract, and how may terms get into it?

Quick Reference

Offer, acceptance, consideration, certainty and an intention to create legal relations. Terms may be express, incorporated by signature, notice or course of dealing, or implied by fact, custom or statute.

#331 • Dispute Resolution

Why does classifying a broken term matter, and what is the test for an innominate term?

Quick Reference

Classification as a condition, a warranty or an innominate term decides whether the innocent party may terminate as well as claim damages. For an innominate term the test is whether the breach deprives that party of substantially the whole benefit of the contract.

#332 • Dispute Resolution

How are contract damages measured, and when are they too remote?

Quick Reference

Damages put the claimant in the position it would have occupied had the contract been performed, measured by expectation loss or, where that is too speculative, reliance loss. Losses are too remote unless they arise naturally from the breach or were within the parties' reasonable contemplation when they contracted.

#333 · Dispute Resolution

State the elements of negligence and how breach, causation and remoteness are tested.

Quick Reference

A duty of care, breach, causation and loss that is not too remote. Breach is measured against the reasonable person doing that activity, with a professional judged by the standard of a reasonably competent member of that profession. Causation in fact is the but for test, causation in law asks whether an intervening act broke the chain, and remoteness turns on reasonable foreseeability of the kind of damage.

#334 · Dispute Resolution

How do contributory negligence and mitigation limit what a claimant recovers?

Quick Reference

Contributory negligence reduces damages by a just and equitable proportion where the claimant's own fault contributed to the harm. Mitigation applies in both contract and tort: the claimant cannot recover loss it could reasonably have avoided, though the burden of proving a failure to mitigate falls on the defendant.

#335 · Dispute Resolution

What is a SLAPP, what are its warning signs, and what do you do if a client asks for one?

Quick Reference

A SLAPP is the use or threat of litigation to silence, intimidate or exhaust a defendant publishing on a matter of public interest, rather than to vindicate a genuine legal right. The warning signs are a weak claim pursued against an individual or small publisher, aggressive and disproportionate correspondence, labelling ordinary letters confidential or without prejudice to deter publication, and running up costs to exhaust the other side. Do not send such letters and do not pursue such a claim; advise the client that you cannot act in that way, record the advice, and decline the instruction.

#336 · Property Practice

List the stages of a freehold residential transaction in order.

Quick Reference

Take instructions and verify identity, then the seller's solicitor issues the pre contract package. The buyer investigates title, raises enquiries, commissions searches and arranges finance. Contracts are then exchanged and a completion date fixed, pre completion searches are made and the certificate of title submitted, completion follows, and finally the tax is dealt with and the transfer and any charge are registered.

#337 · Property Practice

What does the seller's solicitor include in the pre contract package?

Quick Reference

Official copies of the register and title plan, the draft contract, and the protocol forms. Those are typically the property information form and the fittings and contents form, plus the leasehold information form on a leasehold sale.

#338 · Property Practice

What funding questions should you ask a buyer client at the interview?

Quick Reference

Ask how the purchase is financed and where every part of the money comes from, whether anyone else is contributing, and whether anyone else will live at the property. Also ask about a related sale, any chain, and what the deadline is and why. The answers drive the money laundering, occupier and co ownership advice.

#339 · Property Practice

A client asks at interview how much tax they will pay on the purchase. How do you answer?

Quick Reference

Never quote a figure from memory. Explain that the amount depends on the price and on whether any relief applies, that you will calculate it using the applicable rates, and that you will confirm the figure in writing. Client care and costs information should also cover the disbursements, how the firm charges and the complaints route.

#340 · Property Practice

What is the compulsory identity requirement when taking instructions?

Quick Reference

Identify the client and verify that identity from a reliable, independent source before establishing the business relationship. Naming this step expressly earns marks in an attendance note.

#341 · Property Practice

What are the three parts of a register of title and what does each contain?

Quick Reference

The property register describes the land, states whether the estate is freehold or leasehold, refers to the title plan, and records rights benefiting the land such as a right of way. The proprietorship register gives the class of title, names the registered proprietor and records restrictions. The charges register records burdens such as legal charges, restrictive covenants, easements burdening the land, notices and leases.

#342 · Property Practice

Name the four classes of registered title, and say which a buyer and lender expect.

Quick Reference

Absolute, good leasehold, qualified and possessory. Absolute is what a buyer and a lender expect. Anything less may require indemnity insurance or the lender's consent.

#343 · Property Practice

What does the title plan show, and what does it not show?

Quick Reference

It shows the extent of the land, normally edged red. It shows general boundaries only and does not fix the precise boundary line.

#344 · Property Practice

Distinguish a notice from a restriction on the register.

Quick Reference

A notice protects the priority of a third party interest, such as an option or an equitable easement. A restriction in the proprietorship register controls whether a disposition can be registered at all. Where a restriction requires a third party's consent or certificate, obtain it before completion or the application will be rejected.

#345 · Property Practice

What does a form A restriction signal, and what must the buyer's solicitor do about it?

Quick Reference

It signals a tenancy in common in equity, so a sole surviving registered proprietor cannot give a good receipt for capital money. A second trustee must be appointed so that the equitable interests are overreached.

#346 · Property Practice

Which overriding interest matters most in practice, and how do you deal with it?

Quick Reference

The interest of a person in actual occupation, because it binds a buyer without appearing on the register. Ask at interview and again in enquiries who occupies and who contributed to the price. Where an adult occupier is not a seller, take a signed release or have them join in the transfer.

#347 · Property Practice

What does the local search reveal?

Quick Reference

Matters recorded by the local authority: planning permissions and refusals, building regulation approvals, enforcement notices, tree preservation orders, conservation area status, and whether the road is adopted.

#348 · Property Practice

What do the drainage and water enquiries and the environmental search answer, and who is responsible for a survey?

Quick Reference

Drainage and water enquiries confirm connection to mains water and a public sewer, and whether a sewer runs within the boundary. An environmental search assesses contaminated land and flood risk. A survey is the buyer's own responsibility, and the lender's valuation is not a survey.

#349 · Property Practice

Why does caveat emptor make pre contract enquiries essential?

Quick Reference

The buyer investigates and the buyer asks. Enquiries of the seller cover occupiers, neighbour disputes, guarantees, alterations and the consents obtained for them, services and rights of way. A seller who answers dishonestly may be liable in misrepresentation, but a buyer who never asked has no remedy.

#350 · Property Practice

What must a contract for the sale of land contain to be valid, and what does it typically set out?

Quick Reference

It must be in writing, incorporate all agreed terms and be signed by or for each party. It identifies the parties, the property, the estate sold, the price, the deposit, the completion date, the title guarantee and what is included in the sale.

#351 · Property Practice

How do the standard conditions and the special conditions fit together, and which set applies where?

Quick Reference

The contract incorporates standard conditions as amended by special conditions. The Standard Conditions of Sale are used residentially and the Standard Commercial Property Conditions commercially. Both will be given to you in the assessment materials, so apply the extract in front of you rather than reciting condition numbers from memory.

#352 · Property Practice

When does a seller sell with limited rather than full title guarantee?

Quick Reference

Where the seller has limited knowledge of the property, for example a personal representative selling from an estate. Full title guarantee is the norm for a seller who has owned and occupied the property.

#353 · Property Practice

What must be in place before you authorise exchange of contracts?

Quick Reference

The client's express authority, satisfactory title, satisfactory searches and enquiries, a mortgage offer in place, cleared deposit funds, and in a chain a synchronised completion date. Exchanging without any of these exposes both the client and the firm.

#354 · Property Practice

How does telephone exchange under a Law Society formula work?

Quick Reference

Each solicitor undertakes to hold their client's signed part of the contract to the other's order and to post it the same day. The undertaking is personally binding on the solicitor who gives it.

#355 · Property Practice

In what capacity is the deposit held under the standard conditions, and why does it matter?

Quick Reference

The deposit is customarily 10 per cent of the price and is held by the seller's solicitor as stakeholder. A stakeholder cannot release the money before completion. It can be released early only if the contract makes the seller's solicitor agent for the seller.

#356 · Property Practice

Under each set of standard conditions, who bears the risk between exchange and completion?

Quick Reference

They differ, and this is a favourite examination point. Under the Standard Conditions of Sale the seller retains the risk until completion and must transfer the property in the same physical state as at exchange, fair wear and tear excepted, and the buyer may rescind if the property becomes unusable for its purpose. Under the Standard Commercial Property Conditions risk passes to the buyer on exchange, so insurance must be in place from exchange. The old common law rule matched the commercial position, which is why the residential rule catches people out.

#357 · Property Practice

A party fails to complete on the contractual completion date. What is the first step and what does it achieve?

Quick Reference

Time is not initially of the essence, so the innocent party serves a notice to complete. Under the standard conditions that makes time of the essence and gives a fixed further period, commonly ten working days, with compensation payable at the contract rate.

#358 · Property Practice

What remedies follow when a notice to complete expires unsatisfied?

Quick Reference

A seller may rescind, forfeit the deposit, resell the property and claim damages for any further loss. A buyer may rescind, recover the deposit with interest and claim damages, or instead seek specific performance to compel the seller to complete.

#359 · Property Practice

Which searches are made immediately before completion, and why?

Quick Reference

An official search of the whole title with priority, which confirms no new entries and confers a priority period within which to register. A bankruptcy search is made against the buyer for the lender.

#360 · Property Practice

Which transfer form is used, and what makes a document a valid deed?

Quick Reference

A Land Registry form TR1 transfers the whole of a registered title and a TP1 transfers part. A deed must be clear on its face that it is a deed, be signed before a witness who attests the signature, and be delivered.

#361 · Property Practice

State the registration deadlines a buyer's solicitor must diarise, and the consequence of missing the first registration deadline.

Quick Reference

An application to register a dealing with a registered title must be made within the priority period conferred by the official search, or priority is lost. A charge created by a company must also be registered at Companies House within 21 days of creation. Where the transaction triggers first registration, the application must be made within two months of completion, failing which the transfer becomes void as regards the legal estate, which reverts to the seller to hold on a bare trust for the buyer.

#362 · Property Practice

Which land transaction tax applies in England and which in Wales, and who administers each?

Quick Reference

A land transaction in England attracts stamp duty land tax, administered by HM Revenue and Customs. A land transaction in Wales attracts land transaction tax, administered by the Welsh Revenue Authority. They are genuinely different taxes with different legislation, bands and reliefs, and the Welsh tax has no equivalent of the English first time buyer relief.

#363 · Property Practice

What features do the two land transaction taxes share, and how should you deal with reliefs in an attendance note?

Quick Reference

Both are payable by the buyer, both are calculated on a slice basis so each portion of the price is taxed at the rate for its band, both carry higher rates for additional residential properties and corporate purchases, and both require a return and payment within a short statutory period after the effective date. Say which tax applies and why, whether a relief such as group relief or charities relief is in point and on what conditions, and that you will compute the figure from the rates given in the materials.

#364 · Property Practice

What must you establish from the lease when acting for a buyer of a flat?

Quick Reference

Read the lease and establish the unexpired term, the ground rent and any review, the service charge and any restriction on what the client actually wants to do. The tenant typically repairs the interior while the landlord repairs the structure, exterior and common parts through the service charge, so check the covenants dovetail and check the apportionment, the reserve fund, arrears and any planned major works.

#365 · Property Practice

Distinguish an absolute and a qualified alienation covenant, and explain forfeiture.

Quick Reference

An absolute covenant prohibits assignment outright. A qualified covenant requires the landlord's consent, and statute implies that consent is not to be unreasonably withheld and imposes a duty to respond within a reasonable time. Forfeiture is the landlord's remedy for breach under a forfeiture clause; a lender will insist on notice before proceedings, and a mortgagee or tenant may apply for relief from forfeiture.

#366 · Property Practice

When does a business tenancy have security of tenure, and what does a section 25 notice do?

Quick Reference

A business tenancy has security of tenure under Part II of the Landlord and Tenant Act 1954 unless the parties contracted out using the statutory notice and declaration procedure before the lease was granted. A protected tenancy continues until ended in a statutory way. The landlord ends or renews it by serving a section 25 notice, giving between six and twelve months' notice and stating whether renewal is opposed and on which statutory ground.

#367 · Property Practice

How is the legal estate held where two or more people buy together, and what varies?

Quick Reference

The legal estate is always held on a joint tenancy on trust, with no more than four legal owners. What varies is the equitable interest. Joint tenants in equity own the whole together and survivorship applies, so the survivor takes automatically whatever the will says. Tenants in common own distinct shares which pass under the will or on intestacy, and the register carries a form A restriction.

#368 · Property Practice

How can an equitable joint tenancy be severed, and what is the result?

Quick Reference

By written notice to the other joint tenants, by an act operating on a share, by mutual agreement, or by a course of dealing. Severance converts the severing owner's interest into a tenancy in common of a share equal to one divided by the number of joint tenants, so with two owners each takes a half, and any remaining joint tenants stay joint tenants of the balance. Survivorship no longer applies to the severed share.

#369 · Property Practice

What co ownership questions belong in a purchase interview, and when can you not act for both buyers?

Quick Reference

Ask what each is contributing, whether either has children from a previous relationship, and what each wants to happen on death. Unequal contributions or a wish to leave a share elsewhere point to a tenancy in common with a declaration of trust recording the shares. Where the interests of two co buyers actually conflict, or one appears to be under pressure, you cannot simply act for both, and a partner providing money but taking no legal interest should take independent advice.

#370 · Property Practice

What must a solicitor acting for both buyer and lender do before the advance is released?

Quick Reference

Check the title is good and marketable, comply with the lender's handbook instructions, and give a certificate of title. Acting for both is permitted where the mortgage is a standard one.

#371 · Property Practice

Give examples of matters that must be reported to the lender.

Quick Reference

A price differing from that stated in the mortgage offer, a direct payment between seller and buyer, an occupier who is not a borrower, and a recent transaction at an undervalue. Each affects the lender's security or its lending decision.

#372 · Property Practice

A buyer tells you a relative is secretly funding part of the price and expects a share. What do you do?

Quick Reference

Your duty of disclosure to each client pulls in opposite directions, so you cannot keep the information from the lender and continue to act for both. Explain that you must report it. If the client refuses consent you must cease to act for one or both.

#373 · Property Practice

What does customer due diligence require, and when is enhanced due diligence needed?

Quick Reference

Identify the client, verify that identity from a reliable independent source, identify any beneficial owner where the client is a company or trust, and understand the purpose and intended nature of the transaction. Enhanced due diligence applies where risk is higher, for example a politically exposed person or a high risk third country. Due diligence is ongoing, not a box ticked once at the start.

#374 · Property Practice

Distinguish source of funds from source of wealth.

Quick Reference

Source of funds asks where the money for this particular purchase comes from, evidenced by bank statements showing accumulation, a mortgage offer, a gift letter or a completion statement from a related sale. Source of wealth asks how the client came by their wealth overall, whether from employment, a business sale, inheritance or investment. A statement showing a large recent unexplained credit shows funds without wealth, and that is not enough.

#375 · Property Practice

Name the money laundering red flags worth spotting in a conveyancing file.

Quick Reference

An unexplained third party paying all or part of the price, a rushed cash purchase with no lender doing its own checks, a price obviously out of line with value in either direction, a client indifferent to the property or the contract terms, and a request for funds to be returned to a different account or a third party. A transaction aborted after the money arrives, with a request for repayment elsewhere, is a classic laundering method.

#376 · Property Practice

You suspect the purchase money is criminal property. What must you do, and what must you not say?

Quick Reference

Make an internal report to the firm's money laundering reporting officer, who decides whether to report to the National Crime Agency and, where consent is needed, to seek a defence against money laundering. Do not decide for yourself that the suspicion is unfounded, do not investigate the client, and do not complete until the position is resolved. Once a report has been or is being made it is an offence to disclose anything likely to prejudice an investigation, so you may tell the client neutrally that you cannot proceed at present but must not hint at the report.

#377 · Wills and the Administration of Estates

State the test of testamentary capacity in *Banks v Goodfellow*.

Quick Reference

The testator must understand the nature of the act of making a will and its effects, understand the extent of the property being disposed of, and comprehend and appreciate the claims to which they ought to give effect. No disorder of the mind may poison their affections or pervert their sense of right. Capacity is judged at the time of execution.

#378 · Wills and the Administration of Estates

How does *Parker v Felgate* qualify the rule that capacity is judged at execution?

Quick Reference

A will can stand where the testator had capacity when giving the instructions and, at execution, understood only that they were signing a will prepared in accordance with those instructions. It rescues a will where the testator has declined between instructions and signature.

#379 · Wills and the Administration of Estates

Why does it matter that capacity is decision specific?

Quick Reference

A client may lack capacity to manage an investment portfolio and still have capacity to make a simple will. The Mental Capacity Act 2005 supplies the framework, with a presumption of capacity and the rule that an unwise decision is not itself evidence of incapacity. Both points matter when a relative presses you to refuse instructions.

#380 · Wills and the Administration of Estates

What is the golden rule, and what is its status?

Quick Reference

It is prudent practice, not law. Where the testator is elderly, seriously ill or has had an episode of confusion, the will should be witnessed or approved by a medical practitioner who has satisfied themselves of capacity and recorded their reasoning, not merely signed. Failure to follow it does not by itself invalidate the will, but it invites dispute, and if the doctor declines you should record that too.

#381 · Wills and the Administration of Estates

When does the presumption of knowledge and approval fall away?

Quick Reference

Knowledge and approval is presumed on due execution by a testator with capacity. The presumption falls away where the circumstances excite suspicion, most commonly where there is a substantial gift to the person who arranged the will or gave the instructions.

#382 · Wills and the Administration of Estates

What must be proved to establish undue influence in a will, and how do you protect against an allegation?

Quick Reference

Undue influence here means coercion, not persuasion or appeals to affection. There is no presumption of undue influence in wills, so the person alleging it must prove the testator's will was overborne, although frailty and dependency make coercion easier to establish. Your protection is a contemporaneous file note of who was present, what the client said, and why they wish to benefit that person.

#383 · Wills and the Administration of Estates

A daughter brings her mother to a will appointment and wants to sit in. How do you handle it, and what must you ask about?

Quick Reference

Explain politely that you always see a client on their own for part of the appointment, because the will must record the client's own decisions. Take instructions in the client's own words and ask about the family before the gifts. Ask expressly about children from earlier relationships, cohabitants, stepchildren and anyone the client supports financially, since those are the people who bring 1975 Act claims.

#384 · Wills and the Administration of Estates

Set out the formal requirements for a valid will under section 9 of the Wills Act 1837.

Quick Reference

The will must be in writing and signed by the testator, or by another person in the testator's presence and by their direction, with the intention by that signature to give effect to the will. The signature must be made or acknowledged before two or more witnesses present at the same time. Each witness must then attest and sign, or acknowledge their signature, in the presence of the testator.

#385 · Wills and the Administration of Estates

Must the witnesses be present for each other's signatures or know the contents of the will, and why include an attestation clause?

Quick Reference

No on both counts. The witnesses need not be present when the other signs and need not know what the document says. An attestation clause reciting compliance with the formalities raises a presumption of due execution, so always include one.

#386 · Wills and the Administration of Estates

What is the effect of section 15 of the Wills Act 1837 where a beneficiary witnesses the will?

Quick Reference

A gift to an attesting witness, or to the spouse or civil partner of one, is void. The will and the attestation remain valid and only the gift fails, falling into residue. If two other valid witnesses also signed, the beneficiary witness may be disregarded and the gift saved.

#387 · Wills and the Administration of Estates

In what four ways can a will be revoked?

Quick Reference

By a later will or codicil revoking it expressly or by inconsistency. By a written declaration of revocation executed with the same formalities as a will. By burning, tearing or otherwise destroying it, by the testator or by another in their presence and by their direction and with intent to revoke, symbolic destruction being insufficient. And by marriage or civil partnership.

#388 · Wills and the Administration of Estates

What is the effect of marriage on an existing will?

Quick Reference

Marriage or the formation of a civil partnership revokes an earlier will, unless the will was expressly made in expectation of that particular marriage or civil partnership. Clients rarely realise this, so it should be raised whenever a client mentions an engagement.

#389 · Wills and the Administration of Estates

What is the effect of divorce or dissolution on a will?

Quick Reference

It does not revoke the will, although clients routinely assume it does. Under section 18A the former spouse or civil partner is treated as having died on the date the order was made final, so a gift to them lapses and their appointment as executor fails. The rest of the will stands.

#390 · Wills and the Administration of Estates

Are unattested alterations to a signed will effective?

Quick Reference

They are presumed to have been made after execution and are ineffective, unless the original wording is no longer apparent, or the alteration is itself executed with the section 9 formalities, usually by initialling in the margin. Never let a client amend a signed will with a pen.

#391 · Wills and the Administration of Estates

When should you use a codicil and when a fresh will?

Quick Reference

A codicil must be executed with the same formalities as a will, and it republishes the will as at the codicil's own date, which can revive gifts and alter a class gift. Use a codicil only for a small change, and prefer a fresh will where the changes are substantial.

#392 · Wills and the Administration of Estates

Classify the types of gift in a will.

Quick Reference

A specific gift is a particular identified item, such as a named grandfather clock. A general legacy is not tied to a particular asset, so the personal representatives must buy it in if the estate does not hold it. A pecuniary legacy is money, and a demonstrative legacy is money to be paid out of a named fund. Residue is what is left after debts, expenses, tax and legacies.

#393 · Wills and the Administration of Estates

What happens if a will fails to dispose of the whole of residue?

Quick Reference

The undisposed part passes on a partial intestacy, so it is distributed under the intestacy rules rather than under the will. Every will must contain a complete residuary gift, ideally with a substitutional and ultimate gift over.

#394 · Wills and the Administration of Estates

What is ademption and how do you draft around it?

Quick Reference

Ademption defeats a specific gift where the asset has ceased to exist or has been disposed of before death. A gift of a car identified by its registration number adeems if the client sells it. Draft instead by reference to whatever the client owns at death, for example any car I own at my death.

#395 · Wills and the Administration of Estates

What is lapse, and how far does section 33 of the Wills Act 1837 help?

Quick Reference

Lapse defeats a gift where the beneficiary dies before the testator, and the gift falls into residue. Section 33 substitutes the issue of the testator's children or remoter issue who predecease leaving issue alive at the death, unless the will shows a contrary intention. It does not apply to nephews, nieces, friends or siblings, so draft an express substitution clause rather than relying on it.

#396 · Wills and the Administration of Estates

Why do the class closing rules matter when drafting a class gift?

Quick Reference

A class gift such as one to such of my grandchildren as survive me closes once a member takes a vested interest, so a grandchild born later can be excluded. Say expressly in the will when the class is to close so the client's intention governs rather than the default rule.

#397 · Wills and the Administration of Estates

What does a survivorship clause achieve, and what happens where the order of deaths is uncertain?

Quick Reference

A clause requiring survival for a stated period, commonly 28 or 30 days, stops an estate passing twice on a common accident. Where the order of deaths is uncertain, section 184 of the Law of Property Act 1925 presumes the elder died first, subject to the modification that applies to spouses on intestacy.

#398 · Wills and the Administration of Estates

Who takes on intestacy where the deceased leaves a spouse or civil partner but no issue?

Quick Reference

The surviving spouse or civil partner takes the whole estate, and no other relative takes anything. The estate passes under sections 46 and 47 of the Administration of Estates Act 1925.

#399 · Wills and the Administration of Estates

How is an intestate estate shared where there is a spouse and issue?

Quick Reference

The spouse takes the personal chattels absolutely, a statutory legacy free of tax and costs with interest from death, and half the balance of residue absolutely. The other half of the balance goes to the issue on the statutory trusts. The statutory legacy is a fixed sum set by order and uprated periodically, so never guess it; it will be given to you. The spouse must survive by 28 days to take, and a judicially separated or former spouse takes nothing.

#400 · Wills and the Administration of Estates

Where there is no surviving spouse, in what order do relatives take on intestacy?

Quick Reference

The estate goes to the first category producing a living taker, in this order: issue, then parents, then brothers and sisters of the whole blood, then brothers and sisters of the half blood, then grandparents, then uncles and aunts of the whole blood, then uncles and aunts of the half blood. If none survives, the estate passes to the Crown as bona vacantia.

#401 · Wills and the Administration of Estates

How do the statutory trusts work, and who is excluded?

Quick Reference

Beneficiaries take in equal shares contingently on reaching 18 or marrying or forming a civil partnership earlier, with the issue of a predeceased member taking their parent's share per stirpes. Adopted children count as children of the adopters. Stepchildren do not unless adopted, and a cohabitant takes nothing on intestacy however long the relationship.

#402 · Wills and the Administration of Estates

What right does a surviving spouse have over the family home on intestacy?

Quick Reference

The spouse may require the family home to be appropriated towards their entitlement under the Intestates' Estates Act 1952. It is a right to have the house set against their share, not a right to extra value.

#403 · Wills and the Administration of Estates

Who may apply under the Inheritance (Provision for Family and Dependents) Act 1975?

Quick Reference

The spouse or civil partner; a former spouse or civil partner who has not remarried; a cohabitant who lived with the deceased as spouse or civil partner in the same household throughout the two years before death; a child of the deceased; a person treated as a child of the family; and any person maintained wholly or partly by the deceased immediately before death.

#404 · Wills and the Administration of Estates

What are the two standards of provision under the 1975 Act?

Quick Reference

The surviving spouse standard is such provision as is reasonable in all the circumstances, whether or not required for maintenance. Every other category of applicant is limited to what is reasonable for their maintenance.

#405 · Wills and the Administration of Estates

What factors does the court weigh on a 1975 Act claim?

Quick Reference

The section 3 factors: the applicant's present and future resources and needs, those of other applicants and of the beneficiaries, the obligations the deceased had, the size and nature of the estate, any disability, and any other relevant matter including conduct.

#406 · Wills and the Administration of Estates

What is the time limit for a 1975 Act claim, and what does it mean for the personal representatives?

Quick Reference

A claim must be brought within six months of the grant, extendable only with the court's permission. Personal representatives should consider waiting out that six month period before distributing, and the deadline belongs in your attendance note.

#407 · Wills and the Administration of Estates

How does an executor's authority differ from an administrator's?

Quick Reference

An executor is appointed by the will and their authority runs from the date of death, so acts before the grant is valid and probate merely confirms the title. An administrator is appointed by the court and has no authority at all until letters of administration issue.

#408 · Wills and the Administration of Estates

Name the three types of grant and when each issues.

Quick Reference

A grant of probate issues where a valid will appoints a proving executor. Letters of administration with the will annexed issue where there is a valid will but no executor able and willing to act, entitlement following rule 20 of the Non Contentious Probate Rules 1987. Simple letters of administration issue on intestacy under the rule 22 order, which tracks the intestacy order of entitlement.

#409 · Wills and the Administration of Estates

How many personal representatives may take a grant, and when are two required?

Quick Reference

No grant may issue to more than four personal representatives. Where a minority interest or a life interest arises, at least two administrators or a trust corporation will normally be required, so that a good receipt can be given for capital money.

#410 · Wills and the Administration of Estates

Explain the chain of representation and its limits.

Quick Reference

It applies to executors only. Where a sole or last surviving proving executor dies, their own executor becomes executor of the original estate automatically once probate of their will is granted. The chain is broken by intestacy or by a failure to prove. Administrators have no chain, so a grant de bonis non is needed.

#411 · Wills and the Administration of Estates

Set out the route of an administration from death up to the grant.

Quick Reference

Register the death and obtain certified copies of the certificate, locate the will and check its execution, then notify asset holders and obtain date of death valuations of every asset and liability, including joint property, pensions, policies and lifetime gifts in the previous seven years. Decide whether an inheritance tax account is needed or the estate is excepted, and pay the tax due on delivery, using the direct payment scheme or a loan if necessary. Then apply for the grant with the statement of truth.

#412 · Wills and the Administration of Estates

What must personal representatives do after the grant, up to distribution?

Quick Reference

Collect the assets and pay the funeral, testamentary expenses and debts in the statutory order. Advertise under section 27 of the Trustee Act 1925 to protect against unknown claimants. Then pay the legacies, obtain receipts, and prepare estate accounts of capital, income and distribution for the residuary beneficiaries to approve.

#413 · Wills and the Administration of Estates

Describe the structure of inheritance tax on death, without figures.

Quick Reference

Inheritance tax is charged on the value transferred on death and on chargeable lifetime transfers. Each estate has a nil rate band taxed at nil per cent, with the excess taxed at the death rate. A residence nil rate band is available in addition where a qualifying residential interest is closely inherited by lineal descendants, tapered away above a stated estate value, with a downsizing addition where the home was sold or downsized. The rates and thresholds are given in the assessment materials.

#414 · Wills and the Administration of Estates

How is an unused nil rate band transferred, and which transfers are exempt?

Quick Reference

Any unused proportion of a deceased spouse's or civil partner's nil rate band and residence nil rate band is transferable to the survivor, on a claim. Transfers between spouses and civil partners are exempt, subject to a cap where the transferee is not long term UK resident. Gifts to charity are exempt, and a reduced death rate applies where a stated proportion of the net estate passes to charity.

#415 · Wills and the Administration of Estates

What do business relief and agricultural relief do, and what are their conditions?

Quick Reference

They reduce the value transferred on qualifying business and agricultural property, subject to minimum ownership periods and to the exclusion of businesses wholly or mainly dealing in investments. From 6 April 2026 the reliefs run through a capped allowance, with full relief up to a stated allowance and a lower rate above it. The allowance and the relief rates will be supplied in the materials.

#416 · Wills and the Administration of Estates

How are lifetime gifts to individuals treated, and what is taper relief?

Quick Reference

They are potentially exempt transfers and drop out of account entirely if the donor survives seven years. If the donor dies within seven years the gift becomes chargeable, using the nil rate band first. Taper relief then reduces the tax, not the value, on a sliding scale once the donor has survived at least three years. Gifts into most trusts are immediately chargeable instead.

#417 · Wills and the Administration of Estates

What is a reservation of benefit, and which lifetime exemptions should you look for?

Quick Reference

A reservation of benefit arises where the client gives an asset away but continues to enjoy it, for example giving away the house and going on living in it, so the asset is still treated as part of the estate. Look also for the annual exemption, small gifts, gifts in consideration of marriage and normal expenditure out of income. The monetary limits will be given to you.

#418 · Wills and the Administration of Estates

Which trusts essentials arise inside a probate file, and what does a trustee owe?

Quick Reference

An express trust needs the three certainties from *Knight v Knight*: intention, subject matter and objects. A bare trust holds property for an adult absolutely entitled, who can call for it under *Saunders v Vautier*, while a life interest gives the life tenant the income and the remainderman the capital, so trustees must hold an even hand. Under a discretionary trust the trustees select among a class, so no beneficiary has more than a hope until an appointment is made. Trustees owe a duty of care under section 1 of the Trustee Act 2000, must have regard to the standard investment criteria and take proper advice, and must not profit from the trust or act in a position of conflict.

#419 · Business Law and Practice

What are the features of trading as a sole trader?

Quick Reference

The trader carries on business personally, so there is no separate legal person and no registration. Liability is unlimited. Profits are taxed as trading income under income tax with national insurance, and finance comes only from personal resources and borrowing.

#420 · Business Law and Practice

When does a general partnership arise, and what liability do the partners have?

Quick Reference

Under the Partnership Act 1890 a partnership arises where two or more persons carry on a business in common with a view of profit. It needs no writing or formality, so it can arise by accident, which is a favourite examiner trap. Liability is unlimited, joint for debts and joint and several for wrongs, and partners are taxed individually on their profit share.

#421 · Business Law and Practice

Why do professional firms use a limited liability partnership?

Quick Reference

An LLP is incorporated under the Limited Liability Partnerships Act 2000 and is a body corporate, so it contracts in its own name, members' liability is limited and it files accounts publicly. Members are nonetheless taxed transparently, as if they were partners. The entity owes the debts and members are agents of it rather than of each other, so a members' agreement is vital.

#422 · Business Law and Practice

What does a private company limited by shares offer, and at what cost?

Quick Reference

It has separate legal personality, limits members' liability to any amount unpaid on their shares, pays corporation tax on its own profits, and can raise money by issuing shares as well as borrowing. Its affairs are public and the cost is formality: statutory registers, formal decision making and real directors' duties. Weigh liability, tax, formality and finance together in every case.

#423 · Business Law and Practice

What is the status of the certificate of incorporation and of the model articles?

Quick Reference

The certificate of incorporation is conclusive evidence that the company exists. Without bespoke articles the Model Articles for private companies limited by shares apply, and they apply anyway so far as not excluded or modified. The articles bind the company and its members as if signed by each of them, but only as to membership rights, and are amended by special resolution.

#424 · Business Law and Practice

Why should a minority shareholder's veto sit in the shareholders' agreement rather than the articles?

Quick Reference

The articles are public, bind all members present and future, and can be changed on a seventy five per cent majority, so a right sitting only in the articles can be voted away by the very majority the veto exists to control. A shareholders' agreement is a private contract binding only its parties and can be varied only by their unanimous consent.

#425 · Business Law and Practice

How is a director removed under section 168 of the Companies Act 2006?

Quick Reference

By ordinary resolution, but special notice of twenty eight days is required, the director may make written representations and be heard, and a written resolution cannot be used, so a general meeting must be held. Appointments and terminations are notified to Companies House.

#426 · Business Law and Practice

List the general duties of a director codified in sections 171 to 177.

Quick Reference

Act within powers; promote the success of the company for the benefit of the members as a whole, having regard to the listed factors; exercise independent judgment; exercise reasonable care, skill and diligence on a test both objective and subjective; avoid conflicts of interest; not accept benefits from third parties; and declare an interest in a proposed transaction.

#427 · Business Law and Practice

How and when must a director declare an interest in a transaction?

Quick Reference

An interest in a proposed transaction must be declared to the other directors under section 177 before the company enters into it. An interest in a transaction the company has already entered into must be declared under section 182.

#428 · Business Law and Practice

What is a substantial property transaction and what approval does it need?

Quick Reference

An acquisition or disposal of a non cash asset between the company and a director or a person connected with a director, where the value of the asset exceeds the statutory percentage of the company's asset value or the statutory ceiling. It requires an ordinary resolution of the members. The monetary limits will be given to you.

#429 · Business Law and Practice

What is required before a company lends to one of its directors?

Quick Reference

Approval by ordinary resolution of the members, supported by a memorandum setting out the nature of the loan, its amount and its purpose. Exceptions apply, including small loans and expenditure on company business.

#430 · Business Law and Practice

How is a breach of duty by a director remedied, and can the members forgive it?

Quick Reference

Breach is remedied as the underlying equitable or common law rule would be: rescission, recovery of property, an account of profits, equitable compensation or damages. A transaction made without a required approval is voidable, and the director and any connected person must account for gains and indemnify the company. Members may ratify by ordinary resolution, but votes cast in favour by the director in breach and by any member connected with him are disregarded.

#431 · Business Law and Practice

State the majorities for ordinary and special resolutions, and give examples of each.

Quick Reference

An ordinary resolution needs more than fifty per cent of the votes cast; a special resolution needs not less than seventy five per cent. Altering the articles, disapplying pre-emption rights and voluntary winding up need a special resolution. Appointing and removing directors, and approving substantial property transactions and director loans, need an ordinary resolution.

#432 · Business Law and Practice

How does a written resolution work in a private company, and what cannot be done by one?

Quick Reference

Almost any resolution may be passed as a written resolution circulated to every eligible member. The threshold is measured against the total voting rights of all eligible members, not those who reply, so silence counts as opposition. Removal of a director and removal of an auditor cannot be done this way and need a meeting.

#433 · Business Law and Practice

What notice is required for a general meeting, and how can members force one?

Quick Reference

Notice is fourteen clear days. Short notice requires the consent of a majority in number of the members holding ninety per cent of the voting shares. Members holding five per cent of the voting capital may require a meeting to be held.

#434 · Business Law and Practice

What must a petitioner show under section 994, and what is the usual remedy?

Quick Reference

That the company's affairs are being conducted in a manner unfairly prejudicial to the interests of the members generally or of some part of them. Both unfairness and prejudice are needed, judged against the bargain the members actually made. The usual remedy is an order that the majority buy the petitioner's shares.

#435 · Business Law and Practice

How does a derivative claim differ from an unfair prejudice petition?

Quick Reference

In a derivative claim a member sues on behalf of the company for a wrong done to the company by a director. The court's permission is required to continue the claim, and any remedy belongs to the company rather than to the member.

#436 · Business Law and Practice

When may directors of a private company allot shares without a members' resolution?

Quick Reference

Where the company has only one class of shares, the directors may allot without further authority unless the articles say otherwise. In any other case they need authority given by ordinary resolution or in the articles.

#437 · Business Law and Practice

What do the statutory pre-emption rights require, and how are they removed?

Quick Reference

Equity securities allotted for cash must first be offered to existing shareholders in proportion to their existing holdings. The rights can be disapplied by special resolution. They protect a shareholder against dilution, so check them before any share issue to a new investor.

#438 · Business Law and Practice

How are shares in a private company transferred, and when is the transferee a member?

Quick Reference

By stock transfer form delivered with the share certificate. The transfer binds the company only on registration of the transferee in the register of members, so the register, not the form, determines membership.

#439 · Business Law and Practice

Out of what may a dividend lawfully be paid, and who declares it?

Quick Reference

Only out of profits available for distribution, meaning accumulated realised profits less accumulated realised losses, judged by reference to the relevant accounts. A final dividend is declared by ordinary resolution on the board's recommendation. An interim dividend is paid by the board.

#440 · Business Law and Practice

What are the consequences of an unlawful dividend?

Quick Reference

A shareholder who knew or had reasonable grounds to believe the dividend was unlawful must repay it. The directors who authorised it may have to make good the loss to the company.

#441 · Business Law and Practice

What default terms does the Partnership Act 1890 supply, and why do they rarely suit?

Quick Reference

Profits and losses are shared equally whatever the capital contributed, with no salary and no interest on capital. Every partner may manage, ordinary matters are decided by majority but a change in the nature of the business needs unanimity, and no new partner may be admitted without unanimous consent. The firm dissolves on a partner's death or bankruptcy, or on notice where the partnership is at will, so a partner can otherwise dissolve the business by letter.

#442 · Business Law and Practice

How far does one partner bind the firm, and how is liability shared?

Quick Reference

Every partner is an agent of the firm, which is bound by an act done in the usual way of the firm's business unless the partner lacked authority and the third party knew it. Partners are liable jointly for debts incurred while they are partners, and jointly and severally for wrongful acts and misapplied money.

#443 · Business Law and Practice

What liability does a retiring partner keep, and what steps reduce it?

Quick Reference

The retiring partner remains liable for debts incurred before retirement unless released by novation. They also remain liable for later debts to anyone who dealt with the firm before and has not had notice of the retirement. Give actual notice to existing customers and publish notice in the London Gazette for everyone else.

#444 · Business Law and Practice

What are the two tests of corporate insolvency?

Quick Reference

The cash flow test, whether the company can pay its debts as they fall due. And the balance sheet test, whether the value of its assets is less than its liabilities, taking into account contingent and prospective liabilities.

#445 · Business Law and Practice

What is the administrator's statutory hierarchy of objectives, and how is an administrator appointed?

Quick Reference

Rescue the company as a going concern; failing that, achieve a better result for creditors as a whole than on a winding up; otherwise realise property to distribute to secured or preferential creditors. Appointment is by court order, or out of court by the company, the directors or a qualifying floating charge holder. A moratorium halts enforcement while the administration continues.

#446 · Business Law and Practice

Distinguish the three forms of liquidation.

Quick Reference

Compulsory liquidation follows a court order, typically on a creditor's petition. A creditors' voluntary liquidation is begun by the members but controlled by the creditors. A members' voluntary liquidation requires a statutory declaration of solvency, so it is used only where the company can pay its debts in full.

#447 · Business Law and Practice

What is a transaction at an undervalue for clawback purposes?

Quick Reference

A transaction where the company received no consideration, or significantly less consideration than it gave, entered into within two years before the onset of insolvency at a time when the company was unable to pay its debts. The office holder may apply to restore the position to what it would have been.

#448 · Business Law and Practice

What must be shown to set aside a preference?

Quick Reference

That the company did something putting a creditor, surety or guarantor in a better position than they would have been in on a liquidation, within six months before the onset of insolvency, or two years for a connected person, at a time when the company was unable to pay its debts or became unable to do so as a result, and that the company was influenced by a desire to prefer. That desire is presumed where the person preferred is connected with the company.

#449 · Business Law and Practice

When does wrongful trading arise and what can the court order?

Quick Reference

Where a director knew, or ought to have concluded, that there was no reasonable prospect of the company avoiding insolvent liquidation and the company nonetheless went into insolvent liquidation or administration. It is a defence for the director to show that from that point he took every step to minimise the potential loss to creditors that he ought to have taken. The court may order the director to contribute to the company's assets.

#450 · Business Law and Practice

How does fraudulent trading differ from wrongful trading, and what is the disqualification exposure?

Quick Reference

Fraudulent trading requires dishonesty: business carried on with intent to defraud creditors. Wrongful trading requires no dishonesty, only the objective and subjective standard of what the director knew or ought to have concluded. Either can lead to disqualification as a director for up to fifteen years.

#451 · Business Law and Practice

What do you advise a director of a company on the brink of insolvency?

Quick Reference

Meet as a board and minute the reasoning, take insolvency advice at once, and stop incurring credit that cannot be paid. Do not prefer one creditor over another and do not sell assets cheaply to a connected party. Shift the focus of decision making from the shareholders to the creditors.

#452 · Business Law and Practice

State the general prohibition and the consequences of breaching it.

Quick Reference

Under section 19 of the Financial Services and Markets Act 2000, no person may carry on a regulated activity in the United Kingdom, or purport to do so, unless authorised or exempt. Breach is a criminal offence and can make the agreement unenforceable.

#453 · Business Law and Practice

What are the limbs of a regulated activity, and which investments are specified?

Quick Reference

A specified activity, carried on by way of business, relating to a specified investment. Specified investments include shares, debentures, government securities, units in collective investment schemes, options, futures, contracts of insurance and regulated mortgage contracts. Land, and the goodwill and assets of a business, are not, which is why an asset sale often raises no financial services issue while a share sale does. Specified activities include dealing as agent, arranging deals, managing investments and advising on the merits of a particular investment.

#454 · Business Law and Practice

Name the exclusions that take an activity outside the financial services regime.

Quick Reference

Acting as agent where the transaction is entered into on the advice of an authorised person, arrangements made with or through an authorised person, and activities carried on in administering an estate or a trust. There is also the takeover exclusion, for an acquisition of shares carrying a specified proportion of the voting power where the object is day to day control, which is why buying the whole share capital of a trading company often falls outside the regime.

#455 · Business Law and Practice

What is the professional firms route, and in what order should you ask the financial services questions?

Quick Reference

A solicitors' firm may rely on the Part 20 exemption for members of a designated professional body: the activity must be incidental to the professional services provided, the firm must account to the client for any commission, the activity must not be a prohibited one, and the firm must comply with the SRA Financial Services Scope Rules. Ask in order: is there a specified investment, is there a specified activity, is it by way of business, does an exclusion apply, and if not can the firm rely on the exemption. If it cannot, refer the client to an authorised person.

#456 · Business Law and Practice

When must customer due diligence be applied on a corporate matter, and what does it involve?

Quick Reference

Before establishing a business relationship or carrying out an occasional transaction. It means identifying the client and verifying identity from a reliable independent source, identifying any beneficial owner and taking reasonable measures to verify their identity, understanding the purpose and intended nature of the relationship, and monitoring throughout. Enhanced due diligence is required where risk is high, for example a party in a high risk third country, a politically exposed person or their family member or close associate, or an unusually large or complex transaction with no apparent economic purpose.

#457 · Business Law and Practice

How do you identify the beneficial owner of a corporate client?

Quick Reference

Verify the company's existence and constitution, then identify the individuals who ultimately own or control more than twenty five per cent of the shares or voting rights, or who otherwise exercise control. Check the register of people with significant control, and watch for ownership layered through offshore vehicles.

#458 · Business Law and Practice

On a business sale, what do source of funds and source of wealth each ask, and what are the red flags?

Quick Reference

Source of funds asks where the money for this transaction comes from and by what route. Source of wealth asks how the client came to have the wealth from which it is drawn. Both must be asked. Red flags include a price that does not match the value of the business, funds from a third party or an unconnected jurisdiction, late changes to the structure or the purchaser, reluctance to give ownership information, and an offer to pay in cash.

#459 · Business Law and Practice

You suspect money laundering on a corporate transaction. What must you do, and what must you not say?

Quick Reference

Report to the firm's money laundering reporting officer as soon as practicable where you know or suspect, or have reasonable grounds to suspect, that another person is engaged in money laundering. Failing to disclose in the regulated sector is itself an offence, and an authorised disclosure with consent may give a defence to a principal offence. Once a disclosure has been made, do not tell the client or anyone else about the report or a contemplated investigation where that is likely to prejudice it. Take the officer's advice, and if you cease to act give no reason.

#460 · Ethics, Professional Conduct and Negotiation

Which SQE2 stations carry the ethics criterion, and which single station does not?

Quick Reference

Every written station, the advocacy station and the attendance note carry the criterion to identify any ethical and professional conduct issues and exercise judgment to resolve them honestly and with integrity. Only the client interview lacks it, because that station is marked by the assessor playing the client on skills alone. The ethics criterion sits in the application of law half, so missing it costs a whole criterion out of three.

#461 · Ethics, Professional Conduct and Negotiation

What does it mean that ethics in SQE2 is never flagged, and what standard are you held to?

Quick Reference

No station will tell you a conduct issue exists. The issue sits inside an ordinary looking client problem and you must see it, name it and deal with it honestly. The standard is that of a competent newly qualified solicitor: you are not asked to cite paragraph numbers, you are asked to notice, reason and act.

#462 · Ethics, Professional Conduct and Negotiation

Which three parts of the SRA Standards and Regulations are examinable in SQE2?

Quick Reference

The SRA Principles; the SRA Code of Conduct for Solicitors, RELs, RFLs and RSLs, called in assessments the SRA Code of Conduct for Solicitors; and the SRA Code of Conduct for Firms, the last only in relation to managers in authorised firms and compliance officers.

#463 · Ethics, Professional Conduct and Negotiation

List the seven SRA Principles.

Quick Reference

Act in a way that upholds the constitutional principle of the rule of law and the proper administration of justice; in a way that upholds public trust and confidence in the profession and in legal services provided by authorised persons; with independence; with honesty; with integrity; in a way that encourages equality, diversity and inclusion; and in the best interests of each client.

#464 · Ethics, Professional Conduct and Negotiation

Two SRA Principles point in opposite directions on your facts. Which one wins?

Quick Reference

Those Principles which safeguard the wider public interest take precedence over the individual client's interests: the rule of law and the proper administration of justice, and public confidence in a trustworthy solicitors' profession and a safe and effective market for regulated legal services. Where relevant you should tell the client of the circumstances in which your duty to the court and your other professional obligations will outweigh your duty to them. A candidate who resolves the clash by doing what the client wants has failed the criterion, however commercially attractive that answer looks.

#465 · Ethics, Professional Conduct and Negotiation

What is the difference between honesty and integrity, and why does naming the right one earn marks?

Quick Reference

Honesty is close to the lay meaning: not lying, not deceiving, not stealing. Integrity is wider, the moral soundness expected of a profession the public trusts. You can be technically honest and still lack integrity, by letting a client rest on a misapprehension you created or by turning a blind eye to obvious wrongdoing. Say which of the two is engaged and why.

#466 · Ethics, Professional Conduct and Negotiation

What must a firm and its managers do under the SRA Code of Conduct for Firms?

Quick Reference

A firm must have effective systems and controls, and managers are personally responsible for compliance within their area of management. The firm must appoint a compliance officer for legal practice (COLP) and a compliance officer for finance and administration (COFA), and serious breaches must be reported to the SRA promptly.

#467 · Ethics, Professional Conduct and Negotiation

A client gives you a lawful instruction that you consider is against their own interests. What do you do?

Quick Reference

Best interests are not the same as instructions. Advise the client why the instruction is against their interests, record the advice, and if they persist you may generally act on it. If the instruction is unlawful, or would put you in breach of your own duties, you cannot act on it.

#468 · Ethics, Professional Conduct and Negotiation

What does the Principle of independence prohibit in practice?

Quick Reference

It prohibits letting your professional judgment be directed by anyone else's interests: a client, a litigation funder, a referrer of work, or your own financial interest in the outcome. Independence is a separate Principle from best interests, and pressure from a paying referrer engages it directly.

#469 · Ethics, Professional Conduct and Negotiation

How do the duty of confidentiality and the duty of disclosure differ, and which prevails?

Quick Reference

You must keep the affairs of current and former clients confidential unless disclosure is required or permitted by law or the client consents. Separately, where you act for a client you must make them aware of all information material to their matter of which you have knowledge. Confidentiality is the stronger duty and prevails.

#470 · Ethics, Professional Conduct and Negotiation

You hold confidential information about client A that is material to client B's matter. What can you do?

Quick Reference

You do not disclose it. You either decline to act for B, or act only with informed consent and effective safeguards where the rules permit. The disclosure duty does not override the confidentiality owed to A, and A's confidentiality survives the end of the retainer.

#471 · Ethics, Professional Conduct and Negotiation

Why is the duty not to mislead broader than a duty not to lie?

Quick Reference

You must not mislead or attempt to mislead the court, your opponent or anyone else by your own acts or omissions, or by being complicit in your client's. Standing by while the court proceeds on a basis you know to be false is a breach, so silence can mislead just as effectively as a statement.

#472 · Ethics, Professional Conduct and Negotiation

What is an own interest conflict, and is there any consent exception?

Quick Reference

It is a conflict between your own interests, or your firm's, and the client's: the client complains of your negligence, wants to buy your house, or wants to leave you a legacy. There is no consent exception. If there is an own interest conflict, or a significant risk of one, you cannot act.

#473 · Ethics, Professional Conduct and Negotiation

What is a client conflict, and what are the two narrow exceptions?

Quick Reference

It is a conflict between duties owed to two or more current clients on the same or a related matter, and the general rule is that you cannot act. The exceptions are a substantially common interest, and clients competing for the same objective which only one can attain. Both require informed written consent from all clients, that it is reasonable to act, and effective safeguards.

#474 · Ethics, Professional Conduct and Negotiation

Give an example of each client conflict exception, and one situation neither exception can save.

Quick Reference

A substantially common interest covers two partners incorporating a company on agreed terms, sharing a clear common purpose and a strong consensus on how to achieve it. Competing for the same objective covers rival bidders at auction or in a tender. Neither saves acting for the seller and the buyer on the same conveyance, because they are opposed on price, condition and risk.

#475 · Ethics, Professional Conduct and Negotiation

What must you tell a client about costs, and when?

Quick Reference

Give the client information they can understand, including the best possible information on the likely overall cost, at the outset and as the matter goes on. If an estimate is going to be exceeded, tell the client before it is exceeded, not afterwards.

#476 · Ethics, Professional Conduct and Negotiation

What must a client be told about complaints, and where does a complaint go?

Quick Reference

Tell the client at the outset, in writing, about your complaints procedure and about their right to complain to the Legal Ombudsman, including how and when. Deal with complaints promptly, fairly and free of charge, and if one is unresolved after eight weeks confirm that right again in writing. Service complaints go to the firm and then the Ombudsman; allegations of misconduct go to the SRA.

#477 · Ethics, Professional Conduct and Negotiation

What counts as an undertaking, and does it have to be written or use the word undertake?

Quick Reference

An undertaking is a statement by or for you or your firm, to someone who reasonably relies on it, that you or the firm will do something, cause it to be done, or refrain from something. It need not use the word undertake and need not be in writing, so an email or a sentence on the telephone can bind you.

#478 · Ethics, Professional Conduct and Negotiation

The client withdraws instructions and never puts you in funds. What happens to an undertaking you have already given?

Quick Reference

Nothing. It binds you personally, the court can enforce it against you, and it is not discharged because the client fails to put you in funds or withdraws instructions. That is why you undertake only what is within your own control.

#479 · Ethics, Professional Conduct and Negotiation

How do you draft an undertaking safely?

Quick Reference

Put it in writing and keep a copy; undertake only what is within your own control, never something depending on a third party or the client's cooperation; make it certain as to what, to whom, by when and on what condition; make it conditional on a verifiable event such as completion; never undertake to pay money you do not hold; record it centrally and confirm discharge in writing.

#480 · Ethics, Professional Conduct and Negotiation

Which parts of Legal Services are examinable in SQE2, and in which practice areas?

Quick Reference

Legal Services is not examined in SQE2 except for money laundering and financial services. The specification attaches money laundering to BOTH Property Practice and Business Law and Practice, and financial services to Business Law and Practice only. The Legal System of England and Wales, including constitutional, administrative and EU law, and Solicitors' Accounts are not examined at all.

#481 · Ethics, Professional Conduct and Negotiation

What does client due diligence require, and when does enhanced due diligence apply?

Quick Reference

Identify and verify the client and any beneficial owner, understand the purpose and intended nature of the relationship, and keep it under review. Enhanced due diligence applies in higher risk situations, such as a politically exposed person or a party connected with a high risk third country.

#482 · Ethics, Professional Conduct and Negotiation

You suspect that funds in a property transaction are criminal property. What do you do, and what must you not do?

Quick Reference

Do not deal with the property and report internally to the firm's money laundering reporting officer, who decides whether to report to the National Crime Agency. Do not tell the client what you have done or why, because tipping off is itself a criminal offence.

#483 · Ethics, Professional Conduct and Negotiation

Name the money laundering red flags to watch for in a transaction.

Quick Reference

Unexplained third party funding, cash, a rushed transaction with no commercial rationale, a price that does not match the property, evasiveness about the source of funds, and a late change of buyer or of banking details.

#484 · Ethics, Professional Conduct and Negotiation

What is the financial services point you need in outline for Business Law and Practice?

Quick Reference

Carrying on a regulated activity by way of business requires authorisation unless an exclusion applies, or unless the firm relies on the exemption for professional firms carrying on regulated activities incidental to professional services under Part 20 of the Financial Services and Markets Act 2000. Arranging a share sale, or advising on the merits of an investment, is the trigger to notice.

#485 · Ethics, Professional Conduct and Negotiation

When does a non-disclosure agreement become improper under the SRA warning notice?

Quick Reference

An NDA is lawful and common, but becomes improper when used to prevent proper disclosure or to intimidate. Warning markers are a clause purporting to stop the person reporting a criminal offence to the police, cooperating with an investigation, making a protected disclosure to a regulator, or seeking medical or legal advice, and a clause requiring them to state something untrue such as that no complaint was made.

#486 · Ethics, Professional Conduct and Negotiation

A partner asks you to send a settlement offer to a former employee with a 48 hour deadline, no chance to take advice, and a clause saying she may tell nobody about anything. How do you deal with it?

Quick Reference

Advise that clauses preventing protected disclosure or reporting should not be included, record that advice, allow a proper opportunity for her to take independent legal advice, and carve out the permitted disclosures expressly in the agreement itself. Pressure, threatening language and a very short deadline on an unrepresented person are themselves warning markers. If the client insists on the improper clause, you do not draft it.

#487 · Ethics, Professional Conduct and Negotiation

What is a SLAPP, and what are its markers?

Quick Reference

A strategic lawsuit against public participation is litigation, or the threat of it, used to silence, intimidate or exhaust someone publishing on a matter of public interest, rather than to vindicate a genuine right. Markers include a target who is a journalist, campaigner, whistleblower or academic, a weak or exaggerated claim that never identifies what is actually false, aggressive correspondence in tone and volume, a very short deadline, a blanket not for publication label, threats of ruinous costs, and suing the individual as well as the publisher.

#488 · Ethics, Professional Conduct and Negotiation

A client wants a robust letter before action against a journalist. Where is the line between vigorous advocacy and a SLAPP?

Quick Reference

You may pursue a genuine claim vigorously, but you may not use the process to intimidate. If the aim is to suppress rather than to remedy, advise the client against it and decline to send the correspondence. A technically accomplished improper letter is worse than a clumsy one, because it is more effective.

#489 · Ethics, Professional Conduct and Negotiation

What are the six steps of the repeatable method for an unflagged ethics issue?

Quick Reference

Notice the trigger; name the duty engaged in plain words; identify who the duty is owed to; weigh the competing duties using the tie breaker of the public interest in the proper administration of justice and the rule of law; decide and state what you will and will not do; and record it in an attendance note, a confirming letter, and a report to the supervisor or COLP where required.

#490 · Ethics, Professional Conduct and Negotiation

Which step of the six step ethics method do candidates skip, and why does it decide the outcome?

Quick Reference

Step three, identifying who the duty is owed to: the client, the court, a third party, the profession or the regulator. Naming the person owed the duty is what shows whether confidentiality to a client or the duty not to mislead the court prevails, so skipping it leaves the weighing step with nothing to weigh.

#491 · Ethics, Professional Conduct and Negotiation

Your buyer client says his uncle abroad, whom you have never met, will wire the deposit, and asks you not to mention it to the lender because it complicates things. What do you do?

Quick Reference

The trigger is third party funds plus a request for concealment, engaging due diligence and source of funds and, because you also act for the lender, the duty not to mislead it and to pass on what is material to the offer. Verify the uncle and the source of funds, tell the client the lender must be informed and that you cannot proceed otherwise, cease to act if he refuses, and consider an internal report without tipping him off. Record it in a file note and a confirming letter.

#492 · Ethics, Professional Conduct and Negotiation

A client charged with theft tells you she took the goods knowing they were not hers, then says she will plead not guilty and give evidence that she thought she had paid. What can and cannot you do?

Quick Reference

Confidentiality survives and stops you telling anyone what she said, but you cannot mislead the court. Advise her she may plead not guilty and put the prosecution to proof, but that you cannot call her to give an account you know to be untrue. If she insists you must cease to act, and you may not tell the court why. Record the confession and the advice in a full attendance note.

#493 · Ethics, Professional Conduct and Negotiation

An elderly client attends with her nephew, who does most of the talking. She wants to leave the residue to him and five thousand pounds to you for your kindness. What do you do?

Quick Reference

The issues are an own interest conflict, independence, integrity, capacity, and knowledge and approval. See her alone, satisfy yourself as to capacity and consider a medical opinion, and do not prepare a will conferring a significant benefit on you: given the size of the gift, decline and refer her elsewhere. Record who was present and what was said in a full attendance note.

#494 · Ethics, Professional Conduct and Negotiation

A single director of a company instructs you in a Business Law matter. Who is your client, and what should you watch for?

Quick Reference

Usually the company, not the individual, and their interests may diverge. Watch for conflicts between the company and its shareholders, for instructions that serve the director personally rather than the company, and for financial services issues on a share sale.

#495 · Ethics, Professional Conduct and Negotiation

Name the recurring conduct traps in Dispute Resolution and in Property Practice.

Quick Reference

In Dispute Resolution: misleading the other side, including by silence once an earlier statement has become untrue, and improper threats such as threatening criminal proceedings to gain advantage in a civil claim. In Property: money laundering red flags, acting for buyer and lender where a conflict may arise and material information must reach the lender, and acting for both seller and buyer.

#496 · Ethics, Professional Conduct and Negotiation

Where can negotiation be assessed in SQE2, and where can it never appear?

Quick Reference

There is no separate negotiation assessment, but every delivery contains at least one assessment involving negotiation. It can appear in the client interview and attendance note, in case and matter analysis, or in legal writing. It never appears in advocacy, legal research or legal drafting.

#497 · Ethics, Professional Conduct and Negotiation

What is the difference between a position and an interest in a negotiation, and how does a strong answer use it?

Quick Reference

A position is what a party says they want, for example ninety thousand pounds. An interest is why they want it: cash flow before a quarter day, vindication, or continuity of supply. Positions collide, but interests can be traded, so a strong answer identifies your client's interests and the other side's likely interests and proposes terms satisfying both, such as staged payments, a reference, a continued contract or an apology.

#498 · Ethics, Professional Conduct and Negotiation

What is the BATNA, and how does it relate to the opening, target and reserve?

Quick Reference

The best alternative to a negotiated agreement is what your client will do if no deal is struck, and it is the true measure of negotiating strength, so assess it first. The opening is the first offer, ambitious but justifiable; the target is the realistic outcome; the reserve or walk away point is the least favourable outcome the client will accept, set by reference to the BATNA and agreed with the client before the negotiation begins, not during it.

#499 · Ethics, Professional Conduct and Negotiation

In a negotiation, what may you not say, and what are you not obliged to disclose?

Quick Reference

You must not make a false statement of fact to your opponent, the court or anyone else, must not let your client make one through you, must correct a statement that was true when made but has since become false, and must not take unfair advantage of an unrepresented opponent. You are not obliged to volunteer your client's reserve position, commercial motives or weaknesses. Saying my client is not prepared to go above eighty thousand pounds today is legitimate positioning; saying my client has no funds beyond eighty thousand pounds, when you know they do, is a false statement of fact and a breach.

#500 · Property Practice

You are asked to investigate an unregistered title. What are you given, and what are you looking for?

Quick Reference

You are given an epitome of title, a schedule of the documents with copies attached, rather than an office copy of a register. You look for a good root of title, a document at least fifteen years old that deals with the whole legal and equitable estate, identifies the property clearly and casts no doubt on the title. From that root you trace an unbroken chain of ownership to the seller, and you search the Land Charges Department against the name of every estate owner revealed, because in unregistered land incumbrances are registered against names and not against the property.